EXHIBIT “A”

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A HEARING WITH THE PRESIDENT OF ECOHEALTH ALLIANCE DR. PETER DASZAK

HEARING

BEFORE THE

SELECT SUBCOMMITTEE ON THE CORONAVIRUS PANDEMIC

OF THE

COMMITTEE ON OVERSIGHT AND ACCOUNTABILITY

HOUSE OF REPRESENTATIVES

ONE HUNDRED EIGHTEENTH CONGRESS

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A HEARING WITH THE PRESIDENT OF ECOHEALTH ALLIANCE DR. PETER DASZAK

Wednesday, May 1, 2024

HOUSE OF REPRESENTATIVES
COMMITTEE ON OVERSIGHT AND ACCOUNTABILITY
SELECT SUBCOMMITTEE ON THE CORONAVIRUS PANDEMIC
Washington, D.C.

The Subcommittee met, pursuant to notice, at 10:01 a.m., in room 2154, Rayburn House Office Building, Hon. Brad R. Wenstrup (Chairman of the Subcommittee) presiding.

Present: Representatives Wenstrup, Malliotakis, Miller-Meeks, Lesko, Cloud, Joyce, McCormick, Comer (ex officio), Ruiz, Dingell, Ross, Robert Garcia, Tokuda, and Raskin (ex officio).

Also present: Representatives Griffith and Castor.

Dr. WENSTRUP. The Select Subcommittee on the Coronavirus Pandemic will come to order.

Welcome, everyone.

At the discretion of the Chair and pursuant to an agreement with the Committee on Energy and Commerce, the Chairman and Ranking Member of the Committee on Energy and Commerce, Subcommittee on Oversight and Investigations, Mr. Morgan Griffith and Ms. Kathy Castor, are permitted to participate in today's hearing for the purposes of questions and give 3-minute opening statements.

Without objection, pursuant to clause 4(a)(3)(A) of House Resolution 5 and clause 2(j)(2)(C) of House Rule XI, the Chair may recognize staff of the Select Subcommittee for questions for equal periods of time, not to exceed 30 minutes per side.

Finally, without objection, the Chair may declare a recess at any time.

I now recognize myself for the purpose of making an opening statement.

Good morning.

The COVID–19 pandemic highlighted the debate regarding the risks and benefits of a type of high-risk research, specifically what is known as gain-of-function research.

Prior to the pandemic, the public was largely unaware of the existence of this area of research, let alone the fact that they were funding it. I know I first heard of it during our COVID lockdown while researching how we might treat patients suffering from this unique and deadly virus.

In 2014, the National Institute of Allergy and Infectious Diseases, NIAID, awarded EcoHealth Alliance, Inc., a grant entitled "Understanding the Risk of Bat Coronavirus Emergence."

This grant included the collecting of novel coronaviruses from bats and conducting research on those novel viruses using laboratory mice.

The laboratory work where this research was actually occurring was outsourced by EcoHealth Alliance to the Wuhan Institute of Virology in China.

Dr. Daszak, who is here before us, is the president of EcoHealth.

Today, the Select Subcommittee released a report regarding EcoHealth and the evidence surrounding its research activities. This report highlights the Select Subcommittee's concerns with EcoHealth as an organization and Dr. Daszak's interactions with Federal agencies and foreign entities, such as the Wuhan Institute of Virology.

We have found that EcoHealth was nearly 2 years late in submitting a routine progress report to NIH; that EcoHealth failed to report—as required—a potentially dangerous experiment conducted at the Wuhan Institute of Virology; that EcoHealth used taxpayer dollars to facilitate risky gain-of-function research; and that Dr. Daszak omitted a material fact regarding his access to unanalyzed virus samples and sequences at the WIV, the Wuhan Institute of Virology, in his successful effort to have his grant reinstated by NIH.

These are only a few of our findings, which are detailed in our interim report issued today and will be further explored in the Select Subcommittee's final report.

Dr. Daszak has been less than cooperative with the Select Subcommittee, and he has been slow to produce requested documents and has used semantics with the definition of gain-of-function research, even in his previous testimony.

Dr. Daszak maintains that EcoHealth never conducted gain-of-function research by shifting definitions of this area of research put forth by regulatory agencies.

I believe Dr. Daszak either cannot or will not distinguish between the common understanding of gain-of-function research and the more technical definitions provided under various and narrowly defined regulatory frameworks.

But facts are facts. Research can be gain of function without meeting these somewhat convoluted and often hard to understand frameworks that only regulate a very minute subset of research, so minute that HHS has only ever reviewed three proposals out of thousands it receives every year.

Using highly technical definitions in order to assert that a certain project really isn't "gain-of-function" research, when most others would suggest, as well as confirm in their testimonies before the Select Subcommittee, that it absolutely is gain of function, comes across disingenuous, comes across as a disingenuous attempt of avoiding questions and accountability.

The fact is that, as most people understand it, EcoHealth was absolutely conducting gain-of-function research, specifically in Wuhan, China.

Unfortunately, Dr. Daszak's problematic behavior is not limited to his less than fulsome cooperation or the risky research that he conducted.

Recently released documents display Dr. Daszak communicating with Dr. David Morens, who was Senior Advisor to then-NIAID Director Dr. Fauci, and doing this through private channels to avoid FOIA, Freedom of Information Act.

Dr. Daszak and Dr. Morens shared information, ideas, and strategies about how to best proceed to re-obtain funding for this risky research after Dr. Michael Lauer had terminated Dr. Daszak's grant.

Dr. Morens provided Dr. Daszak with internal NIH deliberations and discussions concerning the suspension of EcoHealth's grant, along with assurances that Dr. Fauci and NIAID would seek to mitigate the damage done to EcoHealth.

On April 16, 2024, I announced a subpoena to Dr. Morens for documents in his email relating to the origins of COVID–19.

Yesterday, Dr. Morens produced 30,000 pages of emails, emails from his Gmail account which he said he had used to avoid FOIA.

So, this investigation does not end today.

Dr. Daszak told Dr. Morens in these private communications that he still had 15,000 samples, quote, "in freezers in Wuhan," end quote, and had not yet analyzed more than "700" coronaviruses he had identified in those samples.

EcoHealth has lamented, quote, "the negative impact on . . . U.S. national security," end quote, posed by their inability to sequence all the samples at the WIV.

But EcoHealth's actions themselves are a threat to national security. Dr. Daszak has displayed a disregard for the risks associated with gain-of-function research, the congressional oversight process, and the Federal grant process.

Dr. Daszak has proven that he's not a responsible steward of the American people's tax dollars. We see no reason that the American people should be paying for EcoHealth's research, or any other work Dr. Daszak conducts.

Dr. Ruiz, I believe we agree on this, and there may be a path forward.

Let me be clear. I support global health research. I support work that will make the world safer. That's why we are investigating all of this.

Our concern is that this research and research similar does the opposite—it puts the world at the risk of a pandemic, something even Dr. Fauci addressed as far back as 2012 in an interview.

Dr. Daszak, before I close, and as someone who has been shot at and someone who has received threats, I want to tell you that we unequivocally condemn all threats to you—to you, any public health official, scientists, anyone else. That is wrong and intolerable.

I look forward at this point to an engaging and on-topic discussion.

Thank you.

And I would now like to recognize Ranking Member Ruiz for the purpose of making an opening statement.

Dr. RUIZ. Thank you, Mr. Chairman.

When I was named Ranking Member of the Select Subcommittee last February, I made a commitment to follow the facts in objectively analyzing the origins of the COVID–19 pandemic.

I made a promise to keep an open mind about how the pandemic started, because understanding whether the novel coronavirus emerged from a lab or from nature is essential to better preventing and preparing for future public health threats and to better protecting the American people.

And as the origins of the novel coronavirus still remain inconclusive, I stand by these commitments to this day. But as we approach the year-and-a-half mark of the House Republican majority, it's important that we take stock of what the Select Subcommittee has accomplished so far, and the extent to which we have fulfilled our obligations to the American people.

For more than 14 months, under the guise of investigating COVID's origins, the Select Subcommittee has relentlessly probed the relationship between the Federal Government and our Nation's scientific community to prove—without evidence—Republican accusations that Dr. Daszak and EcoHealth Alliance created the COVID–19 pandemic.

We have pored over more than 425,000 pages of documents provided to us by HHS, the State Department, the Department of Energy, the Government Accountability Office, universities, and private citizens; we have conducted more than 100 hours of closed-door interviews with more than a dozen current and former Federal officials and scientists; and we have held multiple hearings—all in what has appeared to be an effort to weaponize concerns about a lab-related origin to fuel sentiment against our Nation's scientists and public health officials for partisan gain.

And while the Select Subcommittee's probe has uncovered questionable conduct about Dr. Daszak's commitment to transparency and professional integrity, I want to be clear that it has not substantiated allegations that EcoHealth Alliance used taxpayer dollars to fund research that created the COVID–19 pandemic.

No evidence provided to the Select Subcommittee has indicated that the work performed under EcoHealth Alliance's grant, including at the Wuhan Institute of Virology, led to the creation of SARS-CoV–2.

These viruses are too genetically distant from SARS-CoV–2 to be its progenitor virus, and the majority has uncovered no tangible proof of other viruses included in work pursuant to the EcoHealth Alliance grant leading to the creation of the COVID–19 pandemic, and this distinction is critically important.

Today we will hear from both sides that there are serious concerns regarding EcoHealth Alliance's failure to comply with reporting requirements for Federal grantees, concerns that draw into question whether you, Dr. Daszak, sought to deliberately mislead regulators at NIH and NIAID.

And while the majority's probe has not meaningfully advanced our understanding of the pandemic's origins, internal documents and testimony do suggest that Dr. Daszak potentially misled the Federal Government on multiple occasions in both their transparency obligations and reporting requirements as recipients of Federal grant funding.

Transparent and forthcoming communication with Federal Government agencies is expected at all times, and this potential misconduct raises serious questions about EcoHealth Alliance's commitment to the responsible stewardship of taxpayer dollars.

We will also examine whether Dr. Daszak, beyond his obligations as an employee of a federally funded grantee, acted with integrity in his engagement with the possibility that COVID–19 resulted from a research-related incident.

But at the end of the day, this is not the same as uncovering COVID–19's origin, nor is it evidence that our scientific community caused and has sought to cover up the origins of the pandemic, and to cast it as such would be misleading to the American public, damaging to already declining confidence in science and public health, and ultimately harmful to our Nation's pandemic preparedness.

So, as we look to the future of fortifying our Nation for a future public health crisis, it is my hope that we can broaden our focus to the forward-looking policies that will better protect our constituents.

Strengthening oversight of potentially risky research domestically and abroad is an essential part of this conversation, but so is closing pathways for zoonotic transfers of viruses in nature and investing in our public health infrastructure to ensure that when future viruses hit our shores we are ready.

When Democrats were in the majority, we made important strides in these objectives by passing the Consolidated Appropriations Act of 2023, which strengthened protections against undue influence in our biomedical research, improved training and transparency for the handling of select agents, paved the way for the interagency collaboration to fortify zoonotic disease prevention, invested in our infectious disease work force, and enhanced our supply chain preparedness and ability to rapidly develop and deploy medical countermeasures.

It is my hope that in the remaining months of the Select Subcommittee we can work together to build on this legacy and make objectively examining the origins of the novel coronavirus a part of this forward-looking work.

I stand by the commitments I mentioned earlier, Mr. Chairman, to take a serious, balanced look at all possibilities for the origins of the COVID–19 pandemic, and I stand ready to work with you on this critically important mission so that we can save future lives.

Thank you. And I yield back.

Dr. WENSTRUP. Thank you, Dr. Ruiz.

I would now like to recognize Mr. Griffith for the purpose of making an opening statement.

Mr. GRIFFITH. Good morning.

I want to thank Chairmans Comer and Wenstrup, Ranking Members Raskin and Ruiz, for having this hearing today and inviting relevant Energy and Commerce chairs and ranking members to it.

For over a year now we've been working together to investigate the origins of the COVID–19 pandemic and the role that the National Institute of Allergy and Infectious Diseases, NIAID, headed by Dr. Fauci, and EcoHealth, headed by Dr. Daszak, may have played in it by funding research and facilitating the transfer of

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technologies to the Wuhan Institute of Virology, which I will refer to henceforth as Wuhan.

It is critical that we understand what went wrong at NIAID and EcoHealth's relationship with Wuhan. Frankly, it's been alarming to discover that NIAID's approval and oversight of risky experiments involving potential pandemic pathogens is lax.

My hope is that when we are finished we have a package of legislative proposals and other recommendations on biosafety and biosecurity. I increasingly think that means taking final approval authority for these experiments away from NIAID and other funding in favor of an independent entity.

With many lives lost and disrupted by what I believe was a research-related accident, we need transparent, effective oversight and tight regulation of gain-of-function research of concern. We certainly do not have that now.

I participated in Dr. Daszak's transcribed interview. It's clear to me that neither NIAID nor EcoHealth have a complete picture of what Wuhan was up to with it's coronavirus collection or with their gain-of-function research trajectory.

But what we do know from EcoHealth's NIAID grant and EcoHealth's DEFUSE proposal, and the private musings of virologists who collaborated with Wuhan, is not comforting.

We don't have this critical information in large part because NIAID's review and oversight was a farce. NIAID and EcoHealth were asleep at the switch. In my opinion, they were grossly negligent.

I find it incomprehensible that NIAID continues to fund EcoHealth's collaboration with Wuhan to this very day. EcoHealth's grant was reinstated so they could process virus samples and sequences that had been previously collected.

It turns out many of these viruses and sequences are held by Wuhan. NIAID didn't even think to ask them where the samples were stored before restarting their funding.

Even after COVID–19, at NIAID it's just business as usual. It's absurd, and it's got to change, or we risk having perhaps yet another high-consequence accident.

We have to put some adults in place to independently review proposed gain-of-function research of concern that NIAID and other agencies want to fund.

Thank you again, Mr. Chairman. I look forward to continuing working together. And I yield back.

Dr. WENSTRUP. I would now like to recognize Mrs. Dingell for the purpose of making an opening statement.

Mrs. DINGELL. Thank you, Mr. Chairman and Ranking Member Ruiz and Chairman Griffith, who I sit on Energy and Commerce with as well.

I want to echo the thoughts of my colleague, Ranking Member Ruiz, in that we must focus our attention on the future and how we can best protect all Americans from and against future pandemics. Sowing distrust in the scientific and medical communities is not a way to accomplish this goal.

While I agree—and I think most of us on this dais, both sides, today do—that EcoHealth Alliance has proven to be careless and imprecise with their Federal funding, contrary to what we expect

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and demand of any Federal grantee, this does not mean we should throw out the baby with the bathwater, as my Republican colleagues seem to be suggesting.

The National Institutes of Health and the National Institute of Allergy and Infectious Diseases serve important functions in medical and scientific research—to advance the health of all Americans in the world—and they have done good work in the past, and we want that good work to continue in the future.

The EcoHealth Alliance grant did reveal some weaknesses in the reporting systems that were in place at NIAID, but it's important to note that, in conjunction with their Office of Inspector General, NIAID has already taken steps to rectify these issues.

The investigation detailed how EcoHealth was not able to secure underlying documents from its subgrantees about important coronavirus research happening in China and that this limited NIAID's ability to determine if EcoHealth was compliant with its grant terms.

NIH and NIAID have already implemented recommendations from the OIG, including ensuring subaward agreements contain all required terms and guaranteeing that prime awardees can access all research records conducted at the subrecipient locations. These changes apply to all grantees.

This investigation has not looked into these policy changes and how they will improve the information sharing between grantees and the NIH and NIAID going forward. It's only focused on the past.

Throughout this investigation, my Republican colleagues have been trying to cast blame for the COVID–19 pandemic on Drs. Collins and Fauci, and as we have seen time and time again, it's contrary to the evidence. So, now they're shifting to blame a wider swath of dedicated public servants at NIH and NIAID based on the bad actions of a single grantee.

We should be holding today's witness accountable, of which we have bipartisan agreement, but this should not distract us from our ultimate goal: future pandemic preparedness. Strengthening our scientific community to prepare for any future pandemic is our best course of action.

And I yield back, Mr. Chairman.

Dr. WENSTRUP. Thank you.

Our witness today is Dr. Peter Daszak. Dr. Daszak is the president of EcoHealth Alliance, Inc.

Pursuant to Committee on Oversight and Accountability Rule 9(g), the witness will please stand and raise his right hand.

Do you solemnly swear or affirm that the testimony that you are about to give is the truth, the whole truth, and nothing but the truth, so help you God?

Dr. DASZAK. I do.

Dr. WENSTRUP. Thank you.

Let the record show that the witness answered in the affirmative.

The Select Subcommittee certainly appreciates you for being here today, Dr. Daszak, and we look forward to your testimony.

Let me remind the witness that we have read your written statement and it will appear in full in the hearing record. Please limit your oral statement to 5 minutes.

As a reminder, please press the button on the microphone in front of you, so that it is on and the Members can hear you.

When you begin to speak, the light in front of you will turn green. After 4 minutes, the light will turn yellow. When the red light comes on, your 5 minutes has expired, and we would ask that you please wrap up.

I now recognize Dr. Daszak to give an opening statement.

STATEMENT OF DR. PETER DASZAK, PRESIDENT, ECOHEALTH ALLIANCE INC.

Dr. DASZAK. Chairman Wenstrup, Ranking Member Ruiz, distinguished Members of the Select Subcommittee on the Coronavirus Pandemic, it is a privilege to come before you today to discuss the vital research that EcoHealth Alliance conducts globally and to answer your questions about our work.

I respect and appreciate the critical mission of your Select Subcommittee, which is why I volunteered to testify before you today and similarly volunteered to participate in a full-day transcribed interview with the Subcommittee last November.

I am Peter Daszak, president of EcoHealth Alliance, a 501(c)(3) nonprofit based in New York, founded in 1971, with a mission to conduct research on emerging disease threats to the U.S., to identify the underlying causes of pandemics and develop solutions to prevent them, and to benefit conservation.

EcoHealth Alliance scientists have worked in partnership with U.S. Federal agencies since the early 2000's with significant funding support from dozens of leading government and philanthropic donors.

With funding from the National Institutes of Health, we mapped the global spread of high path avian flu and showed its potential to enter the U.S. via trading partners in Canada, information that the Government Accountability Office used to recommend better targeted strategic surveillance by the USDA.

With support from the Department of Homeland Security, we mapped the likely introduction of emerging diseases via air travel and trade and the threat they represent to U.S. public health and agriculture.

With funding from the National Institutes of Health, we identified the origins of the highly lethal Nipah virus and discovered bats are the wildlife reservoirs of MERS, SARS, and a new viral disease that threatens global swine production.

In all of our federally funded projects, we have maintained an open, transparent communication with agency staff, rapidly provided information critical to public health and agriculture, uploaded data and genetic sequences into the U.S.-based NIH GenBank data base, and published our analyses in scientific journals, so that scientists everywhere can use this information.

EcoHealth Alliance's mission has taken us to places around the world where viruses originate, in countries that represent our first line of defense against novel diseases.

Our work in foreign countries can only happen with the approval of the U.S. funding agency and of the host country government.

In China, with approval from NIH and the State Department, we partnered with the country's leading virology lab in Wuhan to do this work, just as many other U.S. government-funded institutions have done.

Our 15 years' work in China provided direct public health benefits to the American people, with Chinese scientists publishing their papers in U.S.-based journals and uploading critical China viral genetic sequences into NIH's GenBank data base.

The viruses that we identified in bats in China were used by U.S. labs throughout the COVID pandemic—and continue to be—to test drugs, vaccines, and therapies that saved countless lives.

EcoHealth Alliance's work is a matter of the public record, via dozens of scientific publications, media interviews, and public lectures given before, during, and after the emergence of COVID–19.

For years, we repeatedly briefed the U.S. Government and international agencies and spoke to the press and public about the risk of a coronavirus outbreak emerging in China from bats.

Unfortunately, in 2019, just as we predicted, a bat-origin SARS-related coronavirus emerged and spread in the city of Wuhan, leading to the global COVID–19 pandemic.

The public nature of our work and our longstanding collaborations with Chinese scientists have made us a target for misinformation about the origins of COVID, beginning in early 2020 and continuing to this day. We have repeatedly and publicly refuted the many myths and false allegations about EcoHealth Alliance's research.

However, at a time when the COVID–19 pandemic seemed out of control and emotions were running high, our organization, our staff, and even my own family were targeted with false allegations, death threats, break-ins, media harassment, and other damaging acts.

Our organization has gone to great lengths to address any allegations head-on, checking our records and stating the facts publicly.

We estimate over 15 million pages of EcoHealth Alliance documents have been shared with Federal agencies, House and Senate committees, and with the public via FOIA requests, and via audits with the Department of HHS OIG and inquiries by the Government Accountability Office.

And we have spent substantial staff time voluntarily helping with every and all realistic and bipartisan investigations on the origin of COVID.

Like other public figures, I have been personally targeted with a white powder letter sent to my home address, devastating online threats and media harassment, and my children and wife's names appearing on a 4chan kill list, among with other incidents now under investigation by the FBI and other authorities.

Indeed, between the public announcement of my voluntary appearance before this Committee and the Subcommittee's tweets over the past 2 weeks, we have seen a noticeable increase in death threats and other harassment, including a swatting attack in my home when the local police received a notice that someone had killed a scientist and had his wife tied up in my basement.

Of course, it was a fake call, but we ended up with six police cars and detectives searching the house and staying for the afternoon.

This is not what a scientist should be put through to do their work.

Our funding has also been targeted even though our research programs continue to be identified as high priority by NIH and other Federal agencies.

Despite these challenges, we remain committed to our pandemic prevention mission and to protecting the health of the people in the U.S. and globally. We continue to conduct our research and to publish scientific papers, so that the data are available for everybody and to upload viral genetic sequences into NIH's GenBank data base.

In 2005, EcoHealth scientists developed the first-ever emerging infectious disease "hotspot" map to chart threats, so we can better target resources to prevent them.

Dr. WENSTRUP. Dr. Daszak——

Dr. DASZAK. Our work and that of many other scientists show that most——

Dr. WENSTRUP. Dr. Daszak, you were given 5 minutes. Are you ready to wrap up?

Dr. DASZAK. Sir, the light says I've got 30 seconds left or so. I've just got a short period here.

Dr. WENSTRUP. You've gone over. Go ahead.

Dr. DASZAK. Our work and that of many other scientists show that most pandemics originate from animals, mainly wildlife, in rapidly developing countries where people and animals come into direct contact.

But as we saw with COVID–19, once a virus begins to spread, it exploits travel and trade networks, which means a virus emerging anywhere on the planet is a direct threat to all of us here in the USA.

Thus, our research has direct benefits for the public health of the American people, strengthens national security, and enhances sustainable economic growth in our allies around the world.

Thank you for your attention. I look forward to your questions.

Dr. WENSTRUP. Thank you.

I now recognize myself for as much time as I may consume for questions, with equal time being afforded to the Ranking Member.

Dr. Daszak, my time is limited, so as much as you could limit your answers to "yes" or "no" for now it would be greatly appreciated.

In 2018, did you submit an application for funding to DARPA for a project entitled "DEFUSE"?

Dr. DASZAK. Yes, EcoHealth submitted——

Dr. WENSTRUP. On this proposal, did you collaborate with Ralph Baric from the University of North Carolina?

Dr. DASZAK. UNC was one of the co-investigators on the proposal, yes.

Dr. WENSTRUP. With Dr. Ralph Baric?

Dr. DASZAK. Yes, he was on the proposal.

Dr. WENSTRUP. On this proposal, did you collaborate with Zhengli Shi from the Wuhan Institute of Virology?

Dr. DASZAK. Yes, they were involved in the proposal.

Dr. WENSTRUP. Were there any other Chinese collaborators on this proposal?

Dr. DASZAK. I don't know. I'd have to check the proposal. But I think it was just that organization. I'm not sure.

Dr. WENSTRUP. The organization being?

Dr. DASZAK. The Wuhan Institute of Virology.

Dr. WENSTRUP. Thank you.

So others may be from the Wuhan Institute of Virology?

Dr. DASZAK. It would be in the proposal. I've got a copy if you want to see.

Dr. WENSTRUP. We'll take a look at that.

A draft of the DEFUSE proposal was released via FOIA and had some comments in it regarding where the work would take place and the biosafety level for it.

The first comment is up on the screen. It has the initials "PD."

Did you write this comment?

Dr. DASZAK. Yes.

Dr. WENSTRUP. Can we get it on the screen? OK.

It says, "Ralph. Zhengli. If we win this contract, I do not propose that all of this work will necessarily be conducted by Ralph, but I do want to stress the U.S. side of this proposal, so that DARPA are comfortable with our team. Once we get funds, we can then allocate who does what exact work, and I believe that a lot of those assays can be done in Wuhan as well."

The proposal says that Dr. Baric would reverse engineer spike proteins to test their capacity to cause disease.

Were you also intending that the WIV conduct some of the work?

Dr. DASZAK. If you look at the language in my comment——

Dr. WENSTRUP. Yes or no, please. I'm just——

Dr. DASZAK. No. The language says assays, not experiments. Already the WIV is clearly listed in the proposal to conduct some assays.

Dr. WENSTRUP. Why did you want to stress the U.S. side of the proposal?

Dr. DASZAK. Well, I checked with DARPA if it was OK to include a Chinese collaborator on the proposal. They said yes. They checked with their higher-ups and said yes. So, we went ahead with that.

But I still was concerned that we didn't want to have too much American taxpayer dollars going to China. So, that's the meaning of that.

Dr. WENSTRUP. The second comment is up on the screen, and, again, it has the initials "PD."

Did you write this comment?

Dr. DASZAK. Yes.

Dr. WENSTRUP. It says, "I'm planning to use my resume and Ralph's. Linfa/Zhengli, I realize your resumes are also very impressive, but I'm trying to downplay the non-U.S. focus of this proposal, so that DARPA doesn't see this as a negative"—again, your language of attempting to downplay how much work would occur in China.

Dr. DASZAK. Well, there's nothing——

Dr. WENSTRUP. Why?

Dr. DASZAK. Sorry.

Dr. WENSTRUP. Why?

Dr. DASZAK. Well, there's nothing unusual about this at all.

If you're writing a grant to a Federal agency, it gets reviewed by a committee of outside scientists.

It's not necessarily—DARPA telling me it's OK to include Chinese and foreign collaborators doesn't necessarily mean the reviewers know that or are going to see it in the same way.

So, I simply wanted to stress the U.S. side of the proposal. I was trying to explain to our colleagues why their CVs weren't going to be in.

We were limited in the number of CVs we could add. That's all. It's quite simple.

Dr. WENSTRUP. Thank you.

So, you were downplaying how much work they would do.

Dr. DASZAK. I say it right there in that comment.

Dr. WENSTRUP. Did Dr. Shi contribute to the drafting of the proposal at all.

Dr. DASZAK. Of course, yes, all collaborators did.

Dr. WENSTRUP. OK. The third comment is up on the screen, and this time it was written by Dr. Baric and says, "In the U.S., these recombinant SARS coronaviruses are studied under BSL–3, not BSL–2. In China, might be growing these viruses under BSL–2. U.S. researchers will likely freak out."

Were you proposing to do the work in DEFUSE at BSL–2?

Dr. DASZAK. No.

Dr. WENSTRUP. In fact, you write in the proposal that the choice of BSL–2 is more cost effective. Dr. Baric testified that he does this work at BSL–3 and, in fact, encouraged you to do the same.

What's more important to you, biosafety or cost?

Dr. DASZAK. Well, look, EcoHealth Alliance maintains the appropriate biosafety levels for our research. The proposal includes research which, according to both U.S. and Chinese biosafety rules, which I have right in front of me, BSL–2. It also has research which, according to both U.S. and Chinese rules, are BSL–3.

The final proposal is the proposal of record, and it is absolutely correct in the definition of biosafety levels that go into this. This is simply a draft proposal where one group is suggesting one thing, another is suggesting another. The final proposal is what matters.

Dr. WENSTRUP. Well——

Dr. DASZAK. And I want to remind the Committee that this proposal was not funded. The work was never done. It is utterly irrelevant to the origins of COVID.

Dr. WENSTRUP. Well, it's not irrelevant, Dr. Daszak. It's very relevant. And, you know, you just stated that China—those are China standards. So, you're OK with China standards as opposed to the U.S. standards, and it does matter whether it's at a BSL–2 or BSL–3, as Dr. Baric pointed out.

And it also is important to understand that you intentionally downplayed the role of China.

Between your actions to DARPA and those within NIH, you have failed to be a good steward of taxpayer dollars, and so our recommendation is that you do not receive any more.

Understanding the lethality of COVID–19—to certain vulnerable populations for sure—do you believe that a lethal virus could be

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used as a bioweapon? And should we be concerned about such weapons?

Dr. DASZAK. Well, with respect, you made two allegations in there that I want to address.

First, you mischaracterized my statement. What I said about biosafety levels is that they are the same in both China and the U.S. and that we follow them implicitly to the letter. I have them in front of me. I'm happy to share them with the Committee.

Second, you suggested that we downplayed the role of China. That's not true. Before the proposal was submitted, I contacted DARPA and asked them if it was appropriate to conduct a project in China and to include Chinese scientists. They checked with their authorities, and they said yes. So, we included that.

And in response to your question—sorry.

Dr. WENSTRUP. Do you have a record of that check?

Dr. DASZAK. Yes, I do.

Dr. WENSTRUP. OK. We would——

Dr. DASZAK. And I'm happy to share it with the Committee.

Dr. WENSTRUP. Please do.

Dr. DASZAK. And I remember the name of the person. It was a Dr. Gimlett, and I have an email record of it. I've seen it recently, yes.

Dr. WENSTRUP. Excellent.

Dr. DASZAK. Of course.

Dr. WENSTRUP. Excellent.

And we also have on record what you had said in your email.

But, again, to my question, do you believe that a lethal virus could be used as a bioweapon, and should we be concerned about such weapons?

Dr. DASZAK. Of course. And there's a long history of pathogens being used as bioweapons.

Dr. WENSTRUP. Thank you.

Dr. DASZAK. But that is the not the research that we do.

Dr. WENSTRUP. Thank you.

But maybe that's why DARPA turned you down.

I now recognize the Ranking Member, Dr. Ruiz from California, for 5 minutes of questions.

Dr. DASZAK. I will address that later, of course.

Dr. RUIZ. I'll go ahead and let you address that for a few seconds.

Dr. DASZAK. Well, thank you very much, Dr. Ruiz.

DARPA turned us down for whatever reasons DARPA had. The only information we received from DARPA about the reasons for turning us down was an exit interview, which I have contemporaneous notes from, which I'm happy to share with the Committee.

In no instance did they suggest that the reason for turning down was because of safety issues. In fact, they said it was an excellent proposal. They didn't have enough money to fund it. They came back to us later to try and fund portions of it.

Dr. RUIZ. For that it was a bioweapon research?

Dr. DASZAK. Sorry?

Dr. RUIZ. Dr. Daszak, did they turn you down because they thought somehow there was going to be bioweapon research in the lab?

Dr. DASZAK. Absolutely not. That was never mentioned.

Dr. RUIZ. I think one of the things that we know—there's two things. One is that there're so many agencies that have shown or reported with low, mostly low, and one with moderate confidence, that it could either be a zoonotic transmission or a lab leak. So, the data is still out there that it's inconclusive.

But one of the things that they clearly state is that it was not bioweapon research.

I believe that my colleagues on both sides of the aisle would agree that transparency and disclosures regarding competing interests are necessary for individuals addressing scientific questions open to reasonable debate.

In February 2020, The Lancet published a statement signed by an international group of scientists who stood together to, quote, "condemn conspiracy theories suggesting that COVID–19 does not have a natural origin."

The statement purports to express solidarity with scientists and frontline workers in China, many of whom, we learned, were sharing early information about the virus at great personal cost.

Dr. Daszak, evidence reviewed by the Select Subcommittee demonstrates that you authored and organized the statement. Is it still your view that all theories suggesting that COVID–19 has a research-related origin are conspiracy theories?

Dr. DASZAK. No. We take all theories seriously. We looked at every single theory that was submitted.

Dr. RUIZ. OK. Well, I'm glad there's been a shift in your thoughts and that you agree, because whether the virus came from a lab or from nature is still unknown.

Two Federal agencies still assess with low and moderate confidence that the virus originated in a lab, and four government agencies still assess with low confidence that the virus emerged from nature.

But the Lancet Statement that you authored summarily attempted to close that question, understanding that your funding and ability to partner with the Wuhan Institute of Virology relied on relaxed scrutiny of research-related origin theories.

So, let me ask you, why did you decide not to declare a competing interest?

Dr. DASZAK. Well, first of all, Dr. Ruiz, the conspiracies that we were talking about in the Lancet letter at the time, in February 2020, were things like there are HIV inserts into the virus, that the virus contains snake DNA, that it's a bioengineered virus.

And those are pure conspiracy theories. There's no evidence at all for them. And they're based on myth and legend. So, that's what we were talking about at the time.

Dr. RUIZ. So, why did you decide not to declare a competing interest.

Dr. DASZAK. I did declare a competing interest. The full statement——

Dr. RUIZ. So, The Lancet later requested that you expand on your initial disclosures. In turn, you elaborated on your coronavirus work in China. However, your updated disclosures do not explicitly acknowledge that you had partnered with the Wuhan Institute of Virology.

That is a glaring omission, particularly when, as you stated at your transcribed interview, your updated disclosures are otherwise extremely detailed.

Dr. Daszak, why did you decide not to name the Wuhan Institute of Virology in disclosures of your coronavirus work in China?

Dr. DASZAK. Well, I want to point out that the competing interest statement that we published in Lancet is longer than the original letter. It contains the most detail——

Dr. RUIZ. It could have a thousand words, two thousand words. The fact of the matter is that you didn't disclose the competing interest. And at one point you agreed with your colleagues that you should not sign the statement and offered that—you should not sign the statement and offered that you would release it, quote, "in a way that doesn't leak it back to our collaboration."

So, I'm going to list a series of actions you took before and shortly after the statement publication.

Dr. DASZAK. So——

Dr. RUIZ. So, 1 second. Let me just finish this list.

Dr. DASZAK. Of course.

Dr. RUIZ. You requested The Lancet not designate you as a corresponding author. You arranged for The Lancet to feature the 27 signatories as coauthors in alphabetical order. You created a COVID–19 Statement Google Mail address for reader correspondence. You directed one of the Statement's signatories to take a press inquiry you had personally received.

Dr. Daszak, did you take those actions, so that the Lancet Statement would not, in your own words, link back to your collaboration?

Dr. DASZAK. No. Those actions were taken because, as we state in, I think, the final sentence of the statement, this is a 300-word statement to show support for scientists fighting a pandemic.

In the final phrase, we say: We speak in one voice. All of us, all 26 people, are leaders in public health.

There are people in—authors of that letter that are far more high ranked in the system than I am. It was inappropriate for me to be first or corresponding author because we speak as one voice. We state that clearly in the letter. We all felt very strongly about it.

And I want to remind the Committee that almost all of those authors followed up with a renewed letter to Lancet to continue support for that original letter about a year later.

Dr. RUIZ. So, you know, let me be clear here. I categorically condemn the threats you and other scientists or public health officials have received due to extreme accusations like we've heard from some of my colleagues. Words have consequences, and repeated attacks can rile up people's negative sentiments and result in threats.

But it seems like you were aware of your involvement, and the Lancet Statement had at minimum the appearance of a competing interest.

Dr. Daszak, you may disagree that you had a competing interest as a technical matter. So, I'd like to know, where did you draw the line between the appearance of a competing interest and an actual competing interest?

Dr. DASZAK. At the time we wrote the letter, none of us, all 26 authors, could ever imagine the political maelstrom that's happened since. None of us thought that the work we did would be considered——

Dr. RUIZ. So, where do you draw the line between the appearance of a competing interest and an actual competing interest?

Dr. DASZAK. Well, in the case of the Lancet letter, we filed our submission——

Dr. RUIZ. In the case of all of your disclosures and all the debate where you didn't say that Wuhan was a subsidiary of your grant, like, where do you—you know, you were doing subsidiary work at Wuhan.

Where do you draw the line between telling folks that, yes, you, in fact, were subgranting research at Wuhan and yet you're debating whether or not this came from Wuhan?

Dr. DASZAK. And I think you'll find in my competing interests I stated we've done extensive work with multiple organizations in China.

Dr. RUIZ. Multiple organization in China is a way to skirt around the fact that it was Wuhan.

Dr. DASZAK. We had years of research——

Dr. RUIZ. It was Wuhan.

Dr. DASZAK. Dozens of——

Dr. RUIZ. I mean, the one lab that we're interested in here is Wuhan.

Dr. DASZAK. Right.

Dr. RUIZ. And yet you say multiple labs.

So, Dr. Daszak, you know, my heart goes out to you and your family. I really feel for you and your family for the attacks that you guys have endured.

But, you know, I can appreciate the importance of solidarity with scientists fighting COVID–19, sharing information about the virus, yet facing resistance from the government. We saw the same during the Trump administration.

But your failure to declare a competing interest, coupled with your efforts to disperse apparent authorship among the signatories, deprived the public of important context when reading the statement.

So with that, you know, I want to thank you for being here.

And I yield back.

Dr. WENSTRUP. Thank you.

I now recognize the Chairman of the Full Committee, Mr. Comer from Kentucky, for 5 minutes of questioning.

Mr. COMER. Thank you, Mr. Chairman.

Dr. Daszak, how long have you been a collaborator with the Wuhan Institute of Virology?

Dr. DASZAK. I think since about 2003.

Mr. COMER. So, during that time before the pandemic, were you aware of all the types of research occurring at the Wuhan lab?

Dr. DASZAK. We were aware of all the published information coming out of the lab and the people we met from the lab.

Mr. COMER. Were you aware that there was a Chinese military lab associated with the Wuhan lab?

Dr. DASZAK. No, and I still am not aware of that.

Mr. COMER. In the fall of 2019, the Wuhan lab virus data base was taken offline.

Have you ever seen its full virus data base?

Dr. DASZAK. No. No.

Mr. COMER. To your knowledge, did the Wuhan Institute conduct coronavirus research that did not involve EcoHealth?

Dr. DASZAK. Yes.

Mr. COMER. In kind of standard procedure, do you—do research—do researchers publish every virus they find or every experiment they conduct?

Dr. DASZAK. They try to publish most eventually.

Mr. COMER. So, is it possible the Wuhan Institute has viruses or conducted experiments that they never published?

Dr. DASZAK. Yes.

Mr. COMER. So, you testified to your lack of knowledge regarding activities at the Wuhan lab. Is it possible COVID–19 was the result of a lab leak?

Dr. DASZAK. I've publicly stated that many times, including as a member of the WHO mission to investigate the COVID origins. All of us in the group unanimously voted——

Mr. COMER. So, yes, it's possible, correct?

Dr. DASZAK [continuing]. That it was possible but extremely unlikely, based on the evidence we have.

Mr. COMER. Dr. Daszak, the U.S. intelligence community has been investigating the origins of COVID–19. During that investigation were you ever contacted by any intelligence agencies?

Dr. DASZAK. Yes.

Mr. COMER. Which ones?

Dr. DASZAK. The CIA, the FBI, and the Defense Intelligence Agency.

Mr. COMER. OK. Dr. Daszak, before I ask you this next question, I want to remind you that you are under oath.

Other than the interactions that you just testified to, have you or do you have a standing relationship, either officially or unofficially, with any agency in the intelligence community?

Dr. DASZAK. No.

Mr. COMER. So, you've never been an informant for the U.S. Government?

Dr. DASZAK. You asked me if I have a standing relationship with any agencies in the intelligence community. The answer is no.

Mr. COMER. So, you're stating publicly you've never been an informant for any U.S. intelligence agency?

Dr. DASZAK. I'm stating publicly that I do not have a standing relationship with the intelligence community. That was your question.

Mr. COMER. Have you ever been an informant for any U.S. intelligence agency?

Dr. DASZAK. Not to my knowledge. I've certainly when they've asked me questions, I've provided answers, as any citizens of the U.S. would.

Mr. COMER. What types of questions? Did they ask you questions before the COVID outbreak?

Dr. DASZAK. I've spoken with FBI before the COVID outbreak, of course.

Mr. COMER. So, you had communications with the intelligence community before the outbreak of COVID.

Dr. DASZAK. Well, the FBI was a member of the Forum on Microbial Threats, which I'm the Chair of. So, yes, only in that context.

Mr. COMER. Like what types of conversations did you talk about prior to the outbreak of COVID?

Dr. DASZAK. Talked about emerging disease threats and what information we have about where on the planet the next virus is likely to emerge.

Mr. COMER. Did the U.S.——

Dr. DASZAK. And then we talked about China and the threats of coronaviruses.

Mr. COMER. So, did the U.S. intelligence community know what was going on in the Wuhan lab.

Dr. DASZAK. That's a question for the U.S. intelligence agency. I mean, we've supplied any information to any government agency that——

Mr. COMER. So, the U.S. intelligence agency was interested, because you had conversations with them prior to COVID, in what type of activity was taking place in the Wuhan lab?

Dr. DASZAK. Yes. And I believe they've asked many other scientists too.

Mr. COMER. How familiar would you state that the intelligence community was with what was going on in the Wuhan lab? Did the intelligence community believe that the Wuhan lab was being used by China to manufacture bioweapons?

Dr. DASZAK. Well, that's really for the intelligence community to answer.

But in the public statements that they've made, two agencies, I think, have low to moderate confidence that there was some activity, and the other agencies were unable to comment. So, I'm not sure they do have much information.

Mr. COMER. Do you find it troubling that, by all accounts from your testimony, the intelligence community suspected something fishy was going on at the Wuhan lab, despite that they still funded research with American taxpayer dollars at the Wuhan lab?

Dr. DASZAK. Well, I don't know that the intelligence community funded research there, but——

Mr. COMER. But the government did.

Dr. DASZAK. Yes.

Mr. COMER. And the intelligence community is part of the government.

Dr. DASZAK. Sure. Sorry, I misunderstood your question.

And I don't find it troubling at all, I don't think it's unusual, because only two intelligence agencies, from my recollection, have any belief that that may have been involved in a lab origin of COVID and they have low to moderate confidence.

I just don't think the data are there to support that. And I think the evidence that this came from a natural spillover is huge and growing every week.

Mr. COMER. My time has expired.

Mr. Chairman, I yield back.

Dr. WENSTRUP. I now recognize Mrs. Dingell from Michigan for 5 minutes of questions.

Mrs. DINGELL. Thank you, Mr. Chairman.

In 2018, EcoHealth submitted a grant application titled "Project DEFUSE" to DARPA. And although DARPA ultimately rejected the application, it proposed experiments to introduce furin cleavage sites into coronaviruses. That has, as we all know, since met controversy.

For context, furin cleavage sites are an attribute found in some viruses, including SARS-CoV–2, that can help make these viruses more infectious.

Dr. Daszak, did Project DEFUSE propose that the Wuhan Institute of Virology perform the furin cleavage site experiments?

Dr. DASZAK. No.

Mrs. DINGELL. Do you have any knowledge of the Wuhan Institute of Virology or UNC ever performing the furin cleavage site experiments?

Dr. DASZAK. No.

Mrs. DINGELL. You have none?

Dr. DASZAK. No.

Mrs. DINGELL. Your answers appear to be consistent with your transcribed interview testimony about Project DEFUSE's proposed furin cleavage site experiments.

However, Republicans have suggested that your testimony today and previously is materially inconsistent with a comment you made on a recently released draft of the Project DEFUSE application.

You wrote that you, quote, "want to stress the U.S. side of this proposal, so that DARPA are uncomfortable with our team. Once we get the funds, we can then allocate who does what exact work, and I believe that a lot of these assays can be done in Wuhan as well."

Republicans have suggested that this comment is inconsistent with your testimony about where particular Project DEFUSE experiments would be conducted.

However, it's not entirely clear that the furin cleavage site experiments you've testified about today and previously are the same work being referenced in your comment.

And I would like to note that the final Project DEFUSE proposal does, in fact, reference certain lab work to be conducted in Wuhan.

Dr. Daszak, is your testimony about the proposed furin cleavage site experiments at UNC inconsistent with your comment about lab work in Wuhan?

Dr. DASZAK. Absolutely not. And as you can see from the sidebar comment in the draft proposal that you're referring to, I was talking about assays.

Assays are things like PCR tests, like the COVID tests we all take. They use noninfectious particles. They're not infectious agents.

The infectious work involving recombinant viruses is clearly laid out in the proposal to be done at UNC.

And I want to remind the Committee again that this proposal was never funded and the work was never done.

Mrs. DINGELL. Well, thank you for clearing that up.

But I do want to note, however, that it appears that you intended to mislead DARPA about the extent of Wuhan's involvement at the

time you made this comment. You told the Chairman that you saw nothing unusual about this.

It kind of raises some questions for me. It's not so easy. So, I guess I'd like you to talk about that a little more.

Dr. Daszak, why did you even entertain the thought of minimizing and apparently omitting the extent of Wuhan's involvement?

Dr. DASZAK. Well, I did talk to the DARPA staff right at the beginning when we started planning this proposal and asked them straight up in an email chain: Is it OK to propose this, to work with the colleagues in China on coronaviruses from China? They said yes.

So there was no intent to hide any China involvement. They're in the proposal. And what matters is the record of the proposal, not what's written in a draft months earlier that was then rejected by our internal deliberations.

The record of the proposal that was submitted clearly lays out the work plan and indicates each lab and what work it's going to do. DARPA reviewed that. They saw it. They had oversight of that.

If then when they said, "Yes, you've got the go-ahead to be funded," we would then have submitted work plans. If I wanted to change where one or two of the assays were done, I would then propose that to DARPA. They would have complete authority and oversight over whether that happened or not.

So, there was no attempt to deceive at all.

Mrs. DINGELL. There are appearance issues here. So, that's why I want to say my Democratic colleagues and I want to——

Dr. DASZAK. Yes.

Mrs. DINGELL [continuing]. Emphasize the importance of transparency.

We believe in a full accounting of facts, and I believe we have been very fair with you. We won't accuse you of creating COVID–19 because that's simply not what we can do with the available evidence. It doesn't demonstrate it. And we will give you the opportunity to respond to allegations—Republican allegations—that may not hold water.

But to the extent that you have considered misrepresenting facts or done so, we will consider that a very serious mistake.

And with that, I yield back, Mr. Chairman.

Dr. WENSTRUP. Thank you.

I now recognize Mr. Griffith from Virginia for 5 minutes of questions.

Mr. GRIFFITH. Thank you.

Dr. Daszak, I'd like to walk through an inconsistency we have identified in your—in this investigation and your testimony.

I would request unanimous consent to move three documents into the record. The first is the draft progress report dated May 2020, the second the year 5 progress report submitted to NIH in August 2021, and the last is an excerpt from Dr. Daszak's transcribed interview of November.

Dr. WENSTRUP. Without objection.

Mr. GRIFFITH. The first document is an earlier draft of the year 5 progress report that was originally due in September 2019 that was sent to the Committee by an anonymous whistleblower.

You should have that now, and it's this document here.

Dr. DASZAK. Yes.

Mr. GRIFFITH. It appears that this version was updated on—or last updated on May 26, 2020, which was about 7 months after it was due and about 16 months before you had submitted—or submit a document—to the NIH—to NIAID in August 2021.

I'll also note that we have repeatedly requested the drafts of these progress reports from EcoHealth, but the drafts, including this one, have not been produced.

In the version you submitted to NIAID in August 2021, in talking about transference from bats to humans, you stated—or the report stated—"There may be as many as the low hundreds of thousands to over a million people infected each year in south China and Southeast Asia."

This statement has since been repeated in multiple news articles for the proposition that direct bat-to-human spillover of viruses is a common occurrence. It has been used to bolster the case for natural origin, and may even be responsible, as you said, for the intelligence community having low to moderate assurance that it started in the lab.

But the May 2020 draft of the year 5 progress report reached a different conclusion with the same data. This is still your people. And you stated in that one, quote, "The low rate of seropositivity observed in this study indicates that the bat coronavirus spillover is a rare event."

Rare or up to a million?

So as of May 2020, EcoHealth was in the opinion that a spillover of bat viruses into people was a rare event. But when you finally sent this report to NIH, the report stated that spillovers infected potentially a million people each year in south China and Southeast Asia.

Now, in addition to the draft being materially different, this May 2020 draft also contradicts your transcribed interview testimony.

During the interview, I specifically asked you, and I asked you directly, whether the 2021 version of the year 5 progress report was, quote, "in all respects the same as," end quote, the one that was supposed to be submitted in September 2019.

Mr. GRIFFITH. You testified from the point of view of the work that this Committee's concerned about in SARS-related coronavirus, yes. Then we had a discussion about the fact that there's a couple of committees involved. And you repeated, yes, that there was nothing significant that wasn't in the draft that would have then been put in the final version. That's your testimony under oath.

In light of this May 2020 draft of the progress report, I don't know how to interpret your answer to me in the transcribed interview as anything other than untruthful.

You changed perhaps one of the most important findings, the likelihood of bat coronavirus spillover into humans, from very rare in early 2020, on a report that was due in September 2019, to possibly over a million spillovers annually in Southeast Asia and Southeast China alone by late 2021.

There's no new data. There's no new paper cited—just a complete 180 reversal on the conclusion.

And, Dr. Daszak, this is uncomfortable, but we must know, and my assumption is that you either had communications with Dr. Fauci or others at NIAID; you had outside pressure; or you realized that your company could be liable, and so, changes were made either to satisfy NIAID or others in the scientific community, or to cover up potential liability. Which one is it?

Dr. DASZAK. Well, there's a fourth possibility, isn't there, that we conducted scientific research in the period between the initial drafting of that report and updating it——

Mr. GRIFFITH. And, if that were true—hang on—if that were true, Dr. Daszak, why didn't you tell me that in November of last year? It's been less than 6 months. I gave you the opportunity to say that there was a change in your initial draft and later drafts. You didn't bring up this fourth possibility then. You didn't say, "Well, we did some additional research, and we made a change on the number of times that a bat virus might spill over into the population in Southeast Asia or South China." You didn't give me that.

I gave you the chance. I didn't ask it as—I was looking for facts. I wasn't trying to cross-examine you at that time, and yet you didn't tell me the truth. And today you come up with a new theory as to why that might've happened, but that's not what you gave me in November. Isn't that true? You didn't give me that in November, isn't that true, yes or no?

Dr. DASZAK. My theory——

Mr. GRIFFITH. Is it yes or no that you told me something wrong and false in November?

Dr. DASZAK. My theory has a substantial advantage over yours in that it's——

Mr. GRIFFITH. No, my theory is you didn't tell me the truth. You're now coming up with a theory as to why your reports in the leaked 2020 report and your later 2021 report are different. I'm asserting, and I'm asking you, you told me something wrong in November if your——

Dr. DASZAK. I believe——

Mr. GRIFFITH [continuing]. Is correct. Is that true?

Dr. DASZAK. I believe I'm seeing this for the first time. You never showed this to me on the record.

Mr. GRIFFITH. I didn't have it in November, but I asked you if there was a substantial change——

Dr. DASZAK. If you would've shown me this, I would've explained it then. If you let me speak, I'll explain it now.

Mr. GRIFFITH. Well, let me——

Dr. DASZAK. I can give you the answer to your question.

Mr. GRIFFITH. I'm going to answer it for you because here's the problem.

Dr. DASZAK. OK.

Mr. GRIFFITH. I asked you specifically if there would be any substantial or significant changes from what you would've had—you said you tried to send the report in earlier, and there was something wrong with the site and so forth, and I said, but that report that was due in September, when you tried to send it in September 2019, were there any substantial differences. You said that there weren't, that they would be substantially the same.

Dr. DASZAK. And that is still correct.

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Mr. GRIFFITH. And you don't think this is a significant change?
Dr. DASZAK. No.
Mr. GRIFFITH. Wow.
Dr. DASZAK. I will explain—I will explain——
Mr. GRIFFITH. You know what, I practiced in the criminal courts for many, many years, and I will just tell you, if you were my client, I would tell you that that dog won't hunt and the judge ain't going to believe that.
And I yield back.
Dr. DASZAK. Thanks.
Dr. WENSTRUP. I now recognize Ms. Ross from North Carolina for 5 minutes of questions.
Ms. ROSS. Thank you very much, Mr. Chairman and Ranking Member.
Dr. Daszak, I'm going to return to the report but talk about a discrete issue examined in the minority staff report that the Democrats released this morning, concerning your compliance with NIH's reporting requirements. So, we're just going to stay on reporting requirements.
And, as you know, as a grant recipient and a scientist, accurate and timely reporting is crucial for the stewards of taxpayer funds, and missteps in this process can reflect poorly on the broader scientific enterprise.
So, consistent with NIH's grants policy statement and NIAID—NIAID required you to submit annual progress reports for your grants—annual, every year.
Your grant had an initial 5-year term, meaning you were required to submit five reports. But I'm going to go back to the report that my colleague was talking about.
So your year 5 report, so the fifth report—you'd already reported, done fine, before then—that was due on September 19. Is that correct?
Dr. DASZAK. That's not correct. It was due on September the 28th, 2019.
Ms. ROSS. Right. I'm sorry. September 28, 2019?
Dr. DASZAK. Yes.
Ms. ROSS. Perfect. Thank you.
But it is also true that you did not submit this report until August 2021, nearly 2 years later, as my colleague just represented.
Dr. DASZAK. Well——
Ms. ROSS. You did not submit the report at the end of September 2019?
Dr. DASZAK. We uploaded the report into the system. The system locked us out. We tried to contact NIH. We received no response——
Ms. ROSS [continuing]. Excuse me. Reclaiming my time.
You did email, on July 30 of 2019, your grants manager, saying you expected to have everything uploaded by the end of July. But then the report was not uploaded by the end of July. I'm quoting an email from Dr. Chmura, dated July 30, 2019, which is on file.
Then HHS IG examined why you submitted the year 5 report nearly 2 years late, and, again, you told us about this lockout for the deadline.

However, NIH performed an electronic, forensic investigation of its report-submission system and found no evidence of a lockout. They also found no evidence to corroborate your claims.

Additionally, in a transcribed interview with Select Committee staff, the NIH official tasked with your grants compliance believed that you could have submitted the report on time.

You have provided us with no documented evidence of EcoHealth's outreach to NIAID about the lockout, and then you stated it didn't exist because you only contacted by phone.

That assertion is pretty difficult to square with your staff's previous patterns of communication over the previous 4 years.

For example, your staff had emailed twice in July 2019, once on July 30, as I previously explained, and then earlier on July 24. So, there was no email on September 29 that said we tried to call you.

And, in the previous year, you previously emailed a copy of your year 4 annual report to multiple NIAID officers. So, there was no email of the fifth year report, the same one that my colleague was talking about.

So your staff knows how to communicate—they had—for the life of the grant. And then later you claimed that that year 5 report was of little significance because the grant renewal application contained experimental results from year 5 of the grant.

But that's just not true because we've heard this whole colloquy about differences that would've been made between 2019 and 2021.

Yes or no, if you had looked back and knew that you would be here today, would you have done something differently to ensure that that report was received in September 2019?

Dr. DASZAK. Well, I have a timeline of submission efforts, and there are attempts to submit which are not yet on the record with you, which we'll supply.

Ms. ROSS. We'd appreciate that.

Dr. DASZAK. There are also—it's also both things can be true, that a forensic analysis of efforts to submit aren't going to pick up a phone call to the grants management staff that our admin people made. They did. They received no response. I believe that person then left.

And, look, the issue over what we would do differently, well, one thing I would do differently was I'd certainly send a copy of the report to our program officer. I did that in year 4 not because that's a routine process—that's not——

Ms. ROSS. But you knew——

Dr. DASZAK [continuing]. But I was trying to set up a meeting with the program officer——

Ms. ROSS [continuing]. You knew that there were difficulties. You had a previous——

Dr. DASZAK. Yes.

Ms. ROSS [continuing]. Experience of doing this and making sure people got things. And what I am saying is, when the taxpayers' money is used for scientific research, it is imperative that people comply with the rules, particularly when their behavior had been exemplary in the past.

And that is what raises the concerns that you have heard from our colleagues——

Dr. DASZAK. Well, let me explain——

Ms. ROSS [continuing]. And with that, I yield back.

Dr. DASZAK [continuing]. But let me explain, please, if I can. NIH told us 2 years later to submit that report. It took NIH 11 days to unlock the system—so any assertion that the system was not locked are demonstrably false—11 days. And that time we got the email receipts which I'll share with you, of course.

Dr. WENSTRUP. I now recognize Ms. Malliotakis from New York for 5 minutes of questions.

Ms. MALLIOTAKIS. Thank you very much, Mr. Chairman.

Dr. Daszak, "gain of function" is broadly understood as a type of research that modifies a biological agent, so that it confers new and enhanced activity to that agent.

Does that describe any of the work that Wuhan conducted as far as you are knowledgeable?

Dr. DASZAK. That is not the definition of "gain of function."

Ms. MALLIOTAKIS. OK. Then what is your definition?

Dr. DASZAK. I don't have a personal definition.

Ms. MALLIOTAKIS. OK. But did you—then let me ask this question. Did any of the research that you funded through your organization at Wuhan Lab modify a virus to make it more infectious among humans, yes or no?

Dr. DASZAK. No. That was not the goal of our work, and that's why it was not considered gain of function.

Ms. MALLIOTAKIS. OK. But in 2016——

Dr. WENSTRUP. Will the gentlelady suspend?

Under the rules of the House, the Chairman is responsible for maintaining order and preserving decorum in the Committee room. I expect the audience members to be respectful of the witnesses, Members, and public, and there should be no filming.

I yield back.

Ms. MALLIOTAKIS. In 2016, in an email to NIH, you said, "We are happy to hear that our gain-of-function research funding ban, or prohibition, or pause rather, has been lifted." So, what were you—what gain of function therefore followed?

Dr. DASZAK. Well, they paused our research because of the gain-of-function pause. They lifted the pause on our research. That was the response I was——

Ms. MALLIOTAKIS. OK. So, after that period of time, you did not fund any research that modified a virus to make it more infectious among humans?

Dr. DASZAK. EcoHealth Alliance never has and did not do gain-of-function research, by definition.

Ms. MALLIOTAKIS. Are you aware of Wuhan Lab conducting that type of research?

Dr. DASZAK. No.

Ms. MALLIOTAKIS. OK. The State Department has indicated ties between Chinese military and WIV since 26—17. You testified earlier that you were not aware of any type of military activity at the WIV?

Dr. DASZAK. I've never seen any. I've never seen any reliable reporting of any.

Ms. MALLIOTAKIS. OK. EcoHealth received tens of millions of dollars from the Defense Department. Did any of this money make its way to the WIV?

Dr. DASZAK. Not a single cent.

Ms. MALLIOTAKIS. OK. Did any scientific information derived with those funds make its way to the WIV?

Dr. DASZAK. The scientific information derived from the DITRA—the work that we do, goes to DITRA and the American people.

Ms. MALLIOTAKIS. OK. And so, no technology or anything obtained with the funds from the Department of Defense made its way to the WIV?

Dr. DASZAK. There is no connection between the WIV and the work we do with DITRA at all whatsoever.

Ms. MALLIOTAKIS. OK. Thank you.

Why did you choose to partner with the Wuhan Lab?

Dr. DASZAK. Well, if you want to work in a foreign country to find the next potential risk of a pandemic, you have to work with labs in those countries. We looked at labs across China. The WIV is the premier viral research in China.

Ms. MALLIOTAKIS. And at no time were you concerned about subpar safety conditions at this particular lab?

Dr. DASZAK. No. In fact, it's got very good biosafety level.

Ms. MALLIOTAKIS. Well, I mean, I think that could be disputed at this point.

Dr. DASZAK. Well, I've never seen any verifiable evidence or data that suggests otherwise.

Ms. MALLIOTAKIS. Like, I think our intelligence department—intelligence community has shown that they've been operating——

Dr. DASZAK. No, I've never seen any verifiable or real data to suggest otherwise. Intelligence community reports behind the, you know, the security code——

Ms. MALLIOTAKIS. OK. I'd like to turn to——

Dr. DASZAK [continuing]. And I can't see those.

Ms. MALLIOTAKIS [continuing]. How much has the EcoHealth Alliance received since the outbreak of the COVID pandemic from—in American tax dollars, from 2020 to today?

Dr. DASZAK. Our annual operating budget this year is about $16 million. So, it's been about 4 years since the pandemic, so, given the fluctuation in funding, approximately four times $15-or $16 million.

Ms. MALLIOTAKIS. OK. And our colleagues on both sides of the aisle say that we want to prevent the next pandemic. Yet EcoHealth is still receiving tens of millions of dollars to do risky——

Dr. DASZAK. To prevent the next pandemic.

Ms. MALLIOTAKIS. Well, but——

Dr. DASZAK. That's our goal. That's our mission. It's written into our mission.

Ms. MALLIOTAKIS [continuing]. I mean, it's one thing to prevent the next pandemic. You could actually produce one and——

Dr. DASZAK. No.

Ms. MALLIOTAKIS [continuing]. What I want to—yes, absolutely, yes.

Dr. DASZAK. No, absolutely not. That's not——

Ms. MALLIOTAKIS. OK. So, although funding was stopped at EcoHealth Alliance work on bat coronaviruses in Wuhan, your re-

searchers are still doing research on bat coronaviruses in Myanmar, Laos, and Vietnam. Is that correct?

Dr. DASZAK. Yes. Not Myanmar. We're not allowed to work there yet because of political instability.

Ms. MALLIOTAKIS. OK. And are you doing experiments with bats and hamsters on the deadly, brain-swelling Nipah virus in Bangladesh?

Dr. DASZAK. I would have to check if we're doing experiments on that. We certainly have funding to work on Nipah virus. It's a very real threat globally and to the American people.

Ms. MALLIOTAKIS. And are you infecting humanized mice with zoonotic viruses in Southeast Asia?

Dr. DASZAK. Not to my knowledge, but I would have to check.

Ms. MALLIOTAKIS. OK. And are you—did you obtain $14 million in taxpayer funds to import bats from Asia to create a breeding colony here in the United States at the State University of Colorado?

Dr. DASZAK. We have a collaboration with CSU to conduct work on a really significant public health threat called Nipah virus.

Ms. MALLIOTAKIS. OK. And now you'll be infecting those bats with deadly viruses including the Nipah and the Ebola. Are you aware that Colorado State University has had lab accidents in the past?

Dr. DASZAK. There will be no infection experiments, to my knowledge, with Nipah or ebola at CSU. That will be done at a BSL–4 facility elsewhere.

Ms. MALLIOTAKIS. OK. I've run out of time. I yield back. Thank you.

Dr. WENSTRUP. Dr. Daszak, we are going to take some of the questions that you said you'd get back to us on, we'll submit them for the record and get a response.

I now recognize Ms. Tokuda from Hawaii for 5 minutes of questions.

Ms. TOKUDA. Thank you, Mr. Chair.

Doctor, a key issue at today's hearing is your transparency as a Federal grantee. There's an apparent gap in understanding between you and NIAID about the status of key bat samples related to your grant.

There's an open question about the extent to which this gap may be attributable to omissions or misrepresentations on your part. I'd appreciate your help in understanding this a little bit more.

In April 2023, NIAID allowed work to resume on the EcoHealth grant, while barring EcoHealth from providing any grant funds to the Wuhan Institute of Virology. The Select Subcommittee interviewed two senior NIAID officials involved in that decision.

We were told that part of the logic in allowing the grant to move forward was preserving access to biological bat samples from your prior work.

So, for context, under the former iteration of the EcoHealth grant, the Wuhan Institute of Virology collected and tested bat samples for the presence of coronavirus.

Doctor, it appears that when NIAID renewed your grant, that they were of the understanding that you would have access to those bat samples. In fact, in a transcribed interview, a NIAID offi-

cial testified that you had directly informed her EcoHealth had access to those samples.

But, in your transcribed interview, you testified that all of the bat samples that WIV had collected under your grant remained in the custody of the WIV.

Doctor, do you have physical access to the bat samples the Wuhan Institute of Virology previously collected under your grant? A simple yes or no will suffice.

Dr. DASZAK. Sadly we do not.

Ms. TOKUDA. Do you have access to the genetic sequences of viruses found in those bat samples?

Dr. DASZAK. Yes, we do.

Ms. TOKUDA. At any point did you as the CEO of EHA demand that your team physically verify and cross-check the sequencing at the Wuhan Institute of Virology? Yes or no will suffice.

Dr. DASZAK. We cross-check all the information that comes out from all of our collaborators.

Ms. TOKUDA. So, you cross-check it, but did you actually see the conduct yourself? Did you go there to the lab, actually have access to the samples, and do the work yourself? Or were you taking the information, the sequencing you got from Wuhan, and just assuming that it was correct?

Dr. DASZAK. For us to go to China and do the sequencing and the extraction of RNA and all that work ourselves——

Ms. TOKUDA. So much of this is based upon——

Dr. DASZAK [continuing]. Would defeat the objective of having a subcontract. The whole point is that the work is done in China by the Chinese researchers because that's what is the most efficient way to do that work.

We then get the data from them. We cross-check it, validate it, submit it for publication. It's reviewed, revised——

Ms. TOKUDA. So, we're working off of the——

Dr. DASZAK [continuing]. Uploaded into the NIH data base.

Ms. TOKUDA. Thank you, sir. I'm taking back my time.

So clearly we are taking the word of these Chinese scientists, and to state the obvious, having the Wuhan Institute of Virology send you electronic sequences through emails, as I recall through your testimony, is not the same thing as physically having the samples.

There's nothing stopping the Wuhan Institute of Virology from withholding certain sequences of particular interest or for manipulating sequence data for unknown purposes.

In addition, the gap in understanding between you and NIAID regarding the status of these samplings is highly concerning to me.

Doctor, did you intentionally misrepresent your access to the samples to get your grants renewed by NIAID, yes or no?

Dr. DASZAK. No. And let me explain why there may be a discrepancy in the understanding from NIAID. We were very clear that the samples collected with U.S. taxpayers' money, because of the geopolitical issues and our grant being terminated, are now unable to be taken out of that lab. We were told that by the Chinese authorities.

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However, we had gotten access to genomic information, new information, sequence data, and that is what we proposed to work with, with NIH.

In fact, it was EcoHealth Alliance, me, who proposed to NIAID in our renegotiation that we would not do any on-the-ground work in China, and we don't need to because we already have full genome——

Ms. TOKUDA. You seem to have a lot more information than what we were provided in the days of testimony that you sat down and gave our team, as well as that that we got from NIAID, so clearly someone is either lying or somebody is clearly misrepresenting themselves.

So if you, in fact, said all of these things to NIAID officials, are you saying that they are misrepresenting you?

Dr. DASZAK. No. And I categorically refute the suggestion that someone's lying. This is a simple case of people are mistaken between what a sample is and what a sequence is.

The critical piece of information that the Committee could see——

Ms. TOKUDA. I think it's very hard for you to mistaken between a sample and a sequence in your profession and within——

Dr. DASZAK. People make that mistake all the time. Scientists usually don't.

Ms. TOKUDA. But the series of mistakes that had to be made in order for NIAID to have the understanding that you had access to the samples yourself versus having it in WIV as you're stating. You clearly stated that to them, that you had no access to the physical samples?

Dr. DASZAK. Yes, repeatedly, and there's a key document that the Committee's missing, which is the——

Ms. TOKUDA. So, the NIAID official misrepresented herself in her testimony to this Committee? Is that what you're claiming?

Dr. DASZAK. I'm not claiming anything about the NIAID official. I've not seen the testimony. I've not seen what evidence they've got.

However, I will state, the Committee should look at a document, which is with NIAID—and we have a copy of it—it's the renegotiated specific aims which clearly say, no on-the-ground work will be done in China——

Ms. TOKUDA. I think—OK.

Dr. DASZAK [continuing]. No samples will come from China. The genomes are already in possession——

Ms. TOKUDA. Doctor, my time is up. I appreciate the——

Dr. DASZAK [continuing]. To do this research.

Ms. TOKUDA [continuing]. Time of the Chair here. I think it's important that grantees represent themselves honestly and transparently.

Dr. DASZAK. Which we do.

Ms. TOKUDA. Our taxpayers deserve better, and this Committee demands nothing less.

Thank you, Mr. Chair. I yield back.

Dr. DASZAK. Thank you.

Dr. WENSTRUP. I now recognize Dr. Miller-Meeks from Iowa for 5 minutes of questions.

Dr. MILLER-MEEKS. Thank you very much, Mr. Chairman, and thank you, Dr. Daszak, for testifying before the Select Subcommittee today. I've not been in your place before, and I would say that it's certainly very challenging.

You know, some people would say where I represent in southeast Iowa is kind of redneck or kind of hickville. So, I think a lot of medical terminology and scientific terminology is very confusing and very confusing to the average person and even the average Congressperson.

So, as I recall, there was, under the Obama Administration, a pause on gain-of-function research, and that was a 2-year pause that Dr. Fauci helped to communicate, and then also was communicating whether or not that prohibition should be lifted.

And, as I recall, weren't you in favor of lifting the prohibition on gain-of-function research?

Dr. DASZAK. I don't think I've ever publicly stated whether the prohibition should be lifted or not. I think we published an editorial in our journal, EcoHealth, that discussed the pros and cons of gain-of-function research, back in 2015, something like that.

And we came out with a conclusion, me and some other authors, that this is a controversial piece of work, that if it goes ahead, must be done in a very controlled and biosafe way.

Dr. MILLER-MEEKS. Thank you for that. And for your grant which funded the Wuhan Institute of Virology, you proposed a one log growth award term, and this term was in place in case any of the viruses that were being modified grew, so—but that's not considered gain of function, so—or is it? That's the confusing part.

Dr. DASZAK. Well, yes, it's quite important distinction. The gain-of-function rules come into play when you propose an experiment, and the experiment is reviewed then as to whether it is likely to, with a reasonable assurance of likelihood, cause an increase in transmission or pathogenicity of a virus already known to infect people.

Because the work we were doing was on bat coronaviruses, it was not covered by those rules. It was not considered of any risk to human health because they've never been shown to infect people. Now, that's one of the reasons why it wasn't considered——

Dr. MILLER-MEEKS. I mean, what about SARS? Did SARS not infect people? Is that not a bat coronavirus?

Dr. DASZAK. The work we were doing was to work with bat coronaviruses——

Dr. MILLER-MEEKS. I may be confused, but I think SARS was a bat coronavirus. So——

Dr. DASZAK. No, SARS was not a bat coronavirus. It's a——

Dr. MILLER-MEEKS. [continuing] Any of the viruses in your experiments, did any of them grow in, as you said, transmissibility, or pathogenicity?

Dr. DASZAK. Not in any way that would cause any reason for concern——

Dr. MILLER-MEEKS. So, they may have grown in transmissibility or pathogenicity, but that's not gain-of-function research?

Dr. DASZAK. Because if you look at the definition of gain-of-function research, it's to assess whether a human pathogen is likely to

be increased by some experiment on it. The viruses we were working on were bat coronas.

But, listen, please don't take my word for it. The NIH wrote to us—and I have the letter here—and said, "Your work is not gain of function and can move ahead."

Dr. MILLER-MEEKS. I think it's contested whether the experiments violated the one log growth term occurred during the fourth or fifth year of your grant, and then, therefore, as we know, there was questions about oversight and oversight on your grant.

Let me just change a little bit. In your written testimony——

Dr. DASZAK. Well, can I just respond very briefly?

Dr. MILLER-MEEKS. Sir?

Dr. DASZAK. Of course.

Dr. MILLER-MEEKS. Thank you.

You state that EcoHealth has maintained open, transparent communication with agency staff, rapidly provided information critical to public health and published analysis in scientific journals, so that scientists everywhere can use this information. Very important.

You continued by describing how Federal funding has allowed you to build capacity in China which led to you being able to obtain actual public health information from the scientists which aided your research of SARS virus, originating from bats.

Based off your remarks and your testimony, would you say that you have responsibly used Federal grant dollars?

Dr. DASZAK. We have responsibly used Federal grant dollars——

Dr. MILLER-MEEKS. So, the HHS Office of the Inspector General——

Dr. DASZAK [continuing]. And complied with every oversight issue.

Dr. MILLER-MEEKS. So, the HHS Office of the Inspector General released a report, in January 2023, stating that the National Institutes of Health and EcoHealth Alliance did not effectively monitor awards and sub awards, which resulted in missed opportunities for oversight and effective accounting of taxpayer dollars.

Amongst the many recommendations of the OIG report included, it stated that EcoHealth should comply with reporting requirements for grants and sub awards as well as implementing enhanced monitoring of how funds are used.

I think the point has already been made that transparency is absolutely necessary. The type of research being done in a lab, whether it is overseas or in the United States, it is critical that it's done in the proper safety environment and that the ethics of the research we're doing should be valid.

And we are stewards of taxpayer dollars that should not be used in an irresponsible, nontransparent manner.

With that, I yield. Thank you.

Dr. WENSTRUP. Thank you. I now recognize Mr. Garcia from California for 5 minutes of questions.

Mr. GARCIA. Thank you, Mr. Chairman.

Thank you, Dr. Daszak. I appreciate you being here, and I want to thank everyone for some good questions that have happened so far.

We all know that this Subcommittee has a critical mission to prevent future pandemics—I think that's why we're all here—and of course keep Americans safe from threats like COVID. And, to the extent we're able to do that here today, I obviously welcome that opportunity.

You probably are aware that we have had multiple hearings now investigating the origins of COVID–19. And I want to just remind us, the scientific consensus on this point is very clear, which is that we do not have any conclusive evidence to determine whether COVID sprung from an accidental lab leak or some animal spillover.

Dr. Daszak, is a fair assessment in your mind as well?

Dr. DASZAK. I would say the scientific consensus right now is that—by far more likely that COVID–19 emerged from the wildlife trade and wildlife markets of China, which employed 14 million people prior to the outbreak. There is zero evidence that it emerged from a lab.

Mr. GARCIA. Now, I want to remind you and as well as the public that our own Federal agencies, of course, share this exact lack of confidence, what one determining origin actually is, and we actually have multiple different perspectives from our agencies.

So, our press reports, as we all know—we have five intelligence agencies that believe in animal spillover with low confidence. The FBI thinks with moderate confidence, and the Department of Energy with low confidence, in a lab leak, and the CIA just doesn't know.

So, from a Federal agency perspective, there is no conclusive evidence that we have actually made.

Now, what we do know, which is a lot of attacks, there's a lot of thoughts about where certain folks in the Congress believe these labs—or these leaks actually came from.

Now, Dr. Daszak, I'm going to be honest with you as well. I share a lot of my colleagues' concerns about EcoHealth Alliance's practices. A lot of them are deeply concerning, particularly when it comes to the monitoring and reporting requirements you had to the National Institute of Allergy and Infectious Diseases.

I think these lapses make a strong case for us, as Members of Congress, to strengthen our country's ability to monitor and enforce effective bio security measures and encourage the same, of course, of our international community.

But I also want to just address what I think is the big elephant in the room today, and oftentimes of what you and your organization are accused of. Did your organization cause the COVID–19 pandemic?

Dr. DASZAK. Absolutely not.

Mr. GARCIA. Thank you. And I say that because we've actually heard that being—have heard that throughout the course of the last few months. And I ask this because we have yet, of course, to focus on real solutions, for example, like increasing funding to actually have better efforts to monitor research grant recipients or improve biosecurity.

This Subcommittee also hasn't really talked about tangible ways to increase international cooperation to achieve these goals.

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But we have heard a lot of implicit and explicit suggestions that EcoHealth Alliance was part of some broader conspiracy to spark a global pandemic.

Now, Doctor, were you ever directed by a government official, let's say Dr. Fauci, to intentionally manufacture a viral pandemic?

Dr. DASZAK. Of course not.

Mr. GARCIA. And I wanted to just ask you that, as ridiculous as that question sounds, because we know folks have actually suggested this. There was actually—we've had a Member of even this—our own Subcommittee mention that Dr. Fauci was trying to, and I quote, create a vaccine pandemic experiment, mandate a vaccine be developed from it, and have the American taxpayers foot the bill.

So, proponents of this conspiracy generally seem to think your organization was somehow involved. So, I'm sure you've heard this before. Do you want to, for the record, again, clear this up?

Dr. DASZAK. Well, it's patently false. There's no evidence for that whatsoever, and there is incredibly substantial evidence that this virus emerged through so-called natural zoonotic origins.

And I might add that we're, right now as we speak, seeing a global pan zootic, an outbreak in wildlife, of high pathogen avian flu. It's now in our cattle. It's in our people, and here we are debating lab biosafety which has nothing to do with the——

Mr. GARCIA. I appreciate that, and I think, you know, we've heard also, not just that somehow Dr. Fauci or you or, you know, your organization was involved, but that maybe it was a Chinese-made bioweapon, which we've heard—actually the same somebody of the Subcommittee has said in the past.

I think what's clear is that this Subcommittee needs to actually focus on good-faith investigations, supporting additional research, ensuring that grantees are actually given the support that they need.

And I think what's also really clear is that we have opportunities in this appropriations cycle, and in others in the future, to actually collaborate, support HHS, support the work the scientists are doing across this country, and that we stop making these conspiracy theorist arguments and attacks that aren't really helping us solve any future pandemics that we may and, we know, will experience in the future.

Dr. DASZAK. Agreed.

Mr. GARCIA. And so, I want to thank you for being here. Again, I think there are real concerns that we've had, and certainly they've been shared today, but I think we should focus on what we actually know to be true and move in that direction.

And, with that, I yield back.

Dr. WENSTRUP. I now recognize Mrs. Lesko from Arizona for 5 minutes of questions.

Mrs. LESKO. Thank you, Mr. Chair.

Thank you for being here. I think I heard you say earlier today that the safety measures in the Chinese labs are the same as in the U.S. Did you say that or something similar to that?

Dr. DASZAK. I said they follow the same biosafety levels for coronavirus research as we do here in the U.S., yes.

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Mrs. LESKO. And so, you said that WIV followed the same U.S. standards—or U.S. standards?

Dr. DASZAK. The mandated rules in China are the same as in the U.S. I have the paperwork here.

Mrs. LESKO. So, help me understand, because I've been told that WIV is a biological safety level 2 and U.S. labs are required to be biological safety level 3 for the type of research that was done. So, how is it that you say they're the same?

Dr. DASZAK. Well, because that's—with all due respect, that's not correct. There are—the biosafety levels are in the Biosafety in Microbiological and Biomedical Laboratory Manual, Sixth Edition, for the U.S., and they mandate that, for bats, SARS-related coronaviruses—on page 452—it states that they're for BSL–2 in culture, BSL–2 or 3 for in vivo work in mice.

So, those are the same standards that are used in China. They're the same standards that are published. They're the same standards that I'm being repeatedly asked questions about and being attacked over. Yet here they are in black and white in the manuals that describe the work that should be done in the U.S.

Mrs. LESKO. Good. I'll look at it closer. The other thing I think you said earlier is that you still don't know that there is a Chinese military presence or collaboration with the Wuhan Institute of Virology. Is that what you said?

Dr. DASZAK. No. What I said was that I know of—I have no knowledge of any military activity in the Wuhan Lab, and that is correct.

Mrs. LESKO. And how do you know that? Because the State Department—this is what the State Department said—the U.S. State Department said in 2021, a fact sheet. It says, "Secrecy and nondisclosure are standard practice for Beijing. For many years the United States has publicly raised concerns about Chinese past biological weapons work which Beijing has neither documented nor demonstrably eliminated despite its clear obligations under the Biological Weapons Convention. Despite the WIV presenting itself as a civilian institution, the United States has determined that the WIV has collaborated on publications and secret projects with the Chinese military."

And this was in 2021, so you just deny what the State Department says, that this is not happening?

Dr. DASZAK. Well, something doesn't add up, I completely agree, because it's the same State Department that reviews our proposals to NIH and allows us to work with that lab.

If the State Department considers that to be a military lab, surely they would've said, "No, the WIV is not appropriate for doing this research." However, they reviewed it and said, "Yes, it's appropriate and allowed."

Now, I don't know—I don't have access to what the State Department reviews and knows, but something doesn't add up there because it's them that gave us the go-ahead to work with WIV. If they'd have said, "No, this is not appropriate," we would've not done so, obviously.

Mrs. LESKO. I'm going to ask you a question similar to what the Congresswoman from Hawaii asked, and, you know, you got a lot

of money, EcoHealth Alliance got a lot of money from grants from the U.S. Government, from the taxpayers.

And I'm trying to understand if you went there, if anybody from your company went to the Wuhan Institute of Virology to actually inspect what was going on, because you keep saying no, there was no gain-of-function research.

I think my colleague right here, Ms. Malliotakis, asked that and you said, no, didn't happen. How do you know that if you didn't go there?

Dr. DASZAK. Well, what I said is, the research we did is not gain of function, that is correct. Our staff visited Wuhan repeatedly during the period we were working with them—we're not working with them anymore—I visited them repeatedly. We had online meetings, calls, Zoom calls, exchanged megabytes of information on a weekly, monthly basis, of raw data and reports and sequences. It's a very active collaboration.

And, after 15-plus years, 20 years of doing that, you get to know how reliable and accurate their data are and the working standards that they use. So, you do get a good knowledge of whether that lab is adequately protected or not, and it is, and it was, and I don't have access to any information from the——

Mrs. LESKO. You know, I'm hoping someday that we are going to get to the bottom of the truth of this. I don't know that we ever are because I'm hearing totally opposite information from reliable sources, than possibly you have said.

And so, we have two competing theories, and we can't get to the bottom of it. It's very frustrating. I hope you understand that.

Dr. DASZAK. I hope you trust the scientists.

Mrs. LESKO. For me—the thing is, we've had scientists on both sides——

Dr. DASZAK. Oh, OK.

Mrs. LESKO [continuing]. That say totally opposite of what you're saying, and so, we've had testimony over and over. My time is up, but I hope you understand that the American people just want to get to the bottom of this, and so do I, because I don't want this to happen again.

Dr. DASZAK. And so do we——

Mrs. LESKO. Thank you.

Dr. DASZAK [continuing]. And that is why we do our work every day in some very difficult places.

Dr. WENSTRUP. I now recognize Mr. Cloud from Texas for 5 minutes of questions.

Mr. CLOUD. Thank you, Chairman. So, you acknowledge you've received a grant in 2014—NIAID awarded an EHA grant, entitled, Understanding the Risk of Bat Coronavirus Emergence, to your organization, correct?

Dr. DASZAK. Yes.

Mr. CLOUD. And, once COVID outbreak happened, you labeled the lab leak theory as conspiracy theory with your knowledge at the time?

Dr. DASZAK. That's not what I said, actually. I said that there were conspiracy theories at the time that we wrote about in our letter in Lancet, including HIV sequences——

Mr. CLOUD. Right.

Dr. DASZAK [continuing]. In the virus and snake DNA, some very bizarre things.

Mr. CLOUD. Your opinion was used to help—you said, "Trust the scientists."

Dr. DASZAK. Yes.

Mr. CLOUD. Not necessarily because of you. I don't know that you had any contact with social media companies.

Did you have contact with social media companies during that time?

Dr. DASZAK. Well, I've posted things——

Mr. CLOUD. Yes. As far as having, you know, a number of the scientists, their opinions——

Dr. DASZAK. Oh, no, no.

Mr. CLOUD [continuing]. Were banned. Our government even worked to help ban some of those scientific opinions of——

Dr. DASZAK. No, that's not what we do.

Mr. CLOUD [continuing]. That differed than yours.

Do you—would you acknowledge that that was bad practice at least, that our government helped work with social media companies to help ban certain scientific opinions?

Dr. DASZAK. Well, I mean, if a social media——

Mr. CLOUD. Do you think that benefited science? Do you think what that was——

Dr. DASZAK. I think there's been a lot of misinformation, there still is, on social media. I think it's good that social media companies are going to scientists to get information about whether the data they're putting out is true or false.

Mr. CLOUD. There were virologists who had, you know, years of experience, who had differing opinions, who were silenced.

Dr. DASZAK. Yes.

Mr. CLOUD. License threatened to be revoked, all those different kind of things——

Dr. DASZAK. Yes.

Mr. CLOUD [continuing]. In the name of science. You know, we had Fauci almost declare himself to be science and that—you know, those kind of things, I think, put a deep distrust in the American people for some of the institutions we're now having them to rely upon.

Looking back, do you think there was any error in that? Are you concerned about that, or do you think——

Dr. DASZAK. Well, I think, you know, as I said in my opening statement, that the emotions during a pandemic are very high. We have loved ones—we've all had that, we've all had our children infected by COVID and worrying that they're going to get really sick. And we know people who've died, and it's very upsetting, very tragic.

I think the emotions lead to a sort of hyper reaction to some of these things, and I think that we should trust our scientists. I think that the head of a government institute that's set up to work on infectious——

Mr. CLOUD. Knowing what you know now, do you regret working with the lab in Wuhan?

Dr. DASZAK. Well, our mission is to prevent pandemics. Pandemics emerge in——

Mr. CLOUD. Knowing what you know now, do you regret working with them?

Dr. DASZAK. Pandemics——

Mr. CLOUD. Not debating that you knew then, but knowing what you know now——

Dr. DASZAK. It's our mission to do this. We don't do this because we want to go and work in foreign countries and risk our lives. Pandemics emerge there. If we can stop them there, we stop them getting here. That's what we do. It's written into our mission. It's——

Mr. CLOUD. Now, you said there's no evidence to a lab leak theory. That's what you've said today a couple times.

Dr. DASZAK. What I said, there's zero verifiable scientific evidence—zero.

Mr. CLOUD. OK. But we have evidence that the Wuhan Lab destroyed data. Does that concern you at all?

Dr. DASZAK. Yes. Any lab that destroys data concerns me.

Mr. CLOUD. OK. Knowing what you know now, do you regret working with the Wuhan Lab?

Dr. DASZAK. As I've said——

Mr. CLOUD. Do you think working with labs that destroy data are—is sound?

Dr. DASZAK. I have no choice. We work in countries where diseases emerge, whether they're our allies or our competitors, because our goal is to stop those diseases from emerging.

Mr. CLOUD. One of the troubling things for us when we go home, because we're representing the taxpayers——

Dr. DASZAK. Yes.

Mr. CLOUD [continuing]. Who, no doubt, are, you know, most of them are not virologists or scientists or—but they're going, we're paying money to fund research in a country that's in unrestricted warfare against us, that destroys evidence, and then you still are like——

Dr. DASZAK. No, no, I——

Mr. CLOUD [continuing]. "Well, maybe we should continue working with them."

Dr. DASZAK [continuing]. I recognize those concerns, absolutely, but if we want to prevent the next pandemic coming out of China, how do we know when it's going to happen? We need scientists on the ground to get that information, so we're better prepared.

Mr. CLOUD. Do you maintain that the lab leak theory is a plausible theory today?

Dr. DASZAK. As I've said all the way through this, it's possible but extremely unlikely.

Mr. CLOUD. And, having done it over, you would continue to work with the Wuhan Lab?

Dr. DASZAK. Well, I—they're a lab in China that does virology research——

Mr. CLOUD. This weighs into like your——

Dr. DASZAK [continuing]. That——

Mr. CLOUD [continuing]. Your organization is still receiving taxpayer funds——

Dr. DASZAK. Yes.

Mr. CLOUD [continuing]. And you're still making decisions on which labs across the world that you go into.

Dr. DASZAK. We don't work in China. We don't work with the Wuhan Lab. They're debarred from funding.

Mr. CLOUD. OK. Right. Right. But the taxpayer right now is trusting you in some essence, through the various recommended channels, to make decisions on who we're working with. And if you're picking labs and you don't think it's an issue that a lab destroyed data and that's not a disqualifying factor, that's a concern.

Dr. DASZAK. Well, let me remind you, we didn't pick a lab. We proposed to do research with that lab. The State Department and NIH reviewed it and said that lab was on the list of labs that it preferred to work with.

Mr. CLOUD. Well, I'm out of time, and I know Dr. Fauci will be here, but there's—the, quote, layers of accountability have become layers of plausible deniability in different institutions——

Dr. DASZAK. Well, that's a fact what I just said. It really is a fact.

Mr. CLOUD [continuing]. And so, we'll have to dig into that because my time is up.

Dr. DASZAK. No, no, I'll send you——

Mr. CLOUD. Thanks, Mr. Chairman. I yield back.

Dr. DASZAK [continuing]. The information about it.

Dr. WENSTRUP. I now recognize Dr. Joyce from Pennsylvania for 5 minutes of questions.

Dr. JOYCE. Thank you, Chairman Wenstrup, for convening what I feel is a critical meeting.

It is imperative that we are an oversight body who conduct an adequate investigation and ensure that the American taxpayer dollars are being spent judiciously and within the law.

Dr. Daszak, why did you try to downplay the fact that Shi Zhengli and other Chinese scientists would be working on your proposed grant to DARPA?

Dr. DASZAK. I did not. I told DARPA who——

Dr. JOYCE. Did you make any edits to your proposal in order to obscure Chinese involvement in this work?

Dr. DASZAK. No. It's clearly——

Dr. JOYCE. Specifically, did you alter the number of Chinese investigators in initial application and follow-up application? Were the numbers the same?

Dr. DASZAK. There was only one application.

Dr. JOYCE. And so, that number has always been the number of Chinese investigators that you worked with?

Dr. DASZAK. The application that was submitted to the agency is the only matter of record. Anything else is a draft. They're ideas that can be revised and changed.

Dr. JOYCE. Following up on some of my colleagues' questions—and I appreciate the candidness that we continue to pepper you with, because I think we have conflicting answers—where are the sequences stored, and who has that data base?

Dr. DASZAK. Those are two different questions.

Dr. JOYCE. I know that.

Dr. DASZAK. The sequences that we acquired from our work with the Wuhan Institute of Virology are stored at EcoHealth Alliance and have been shared publicly through GenBank, the NIH data

base, published and shared with this Committee and other committees.

We have other sequences that we acquired before our grant was renegotiated, which we're currently analyzing and will publish——

Dr. JOYCE. Do you feel you have all the sequences from the Wuhan Institute of Virology?

Dr. DASZAK. Well, I believe we have all the sequences of any relevance to COVID.

Dr. JOYCE. Having said that you're recognizing that data was destroyed, you feel that you have all the sequences——

Dr. DASZAK. Yes, I do.

Dr. JOYCE [continuing]. That were not destroyed?

Dr. DASZAK. There's a reason for——

Dr. JOYCE. You have all the sequences that were not destroyed?

Dr. DASZAK. No, I think—I think we have—we had all available SARS coronavirus-related, bat coronavirus sequences. Prior to the outbreak, I had requested from WIV that they send us all their data, so we publish a paper together, summarizing the whole of the work that they do and we do. They included, in the data they sent us, sequences that weren't collected with our U.S. funding.

So we had access to all their information of any relevance to COVID. That was before the outbreak. So, of course, it didn't matter back then. After the outbreak——

Dr. JOYCE. That's a great point——

Dr. DASZAK. And we published it.

Dr. JOYCE [continuing]. It didn't matter back then.

Dr. DASZAK. And we published it.

Dr. JOYCE. But subsequent to that, we recognize that there has been data that has been destroyed. So, giving us data that doesn't matter is irrelevant to the——

Dr. DASZAK. The dates, it matters a lot. It didn't matter to them whether they sent it to us or not. Now we have the COVID pandemic and this huge geopolitical concern. There wasn't a single request for any of those sequences to be moved or changed. We published them in the summer of 2020 in a U.S. journal with—uploaded, sorry, into U.S. NIH GenBank data base.

Dr. JOYCE. So, you have to count on the goodwill of the Wuhan Institute of Virology in order to meet your grant requirements. How does that not violate the terms of the Wuhan Institute of Virology's debarment?

Dr. DASZAK. Well, we don't work with them. They're debarred.

Dr. JOYCE. So, you have no further contact with them?

Dr. DASZAK. What I said is we don't work with them. We do——

Dr. JOYCE. Do you have further contact with them?

Dr. DASZAK. Of course, we have contact. Under the terms of my renegotiated RO with NIH, we have to publish data from that work. Of course we have to send copies of drafts of papers, get them to check and make sure that they've included everything, that we've got everything correct. So, of course we have contact with them.

Dr. JOYCE. Do you feel, given all the concerns that have been raised during this hearing, that EcoHealth should continue to receive taxpayer funds?

Dr. DASZAK. EcoHealth's work is critical, as I said in my opening statement, to preventing the next pandemic. Of course we should receive Federal work. We've worked very carefully and precisely with all of the Federal funding we've had. We've reported on time in every other instance. The one instance we were unable to, the NIH system locked us out, and you can see from——

Dr. JOYCE. We haven't been provided with data. There was an employee who made a phone call, but you're not sure they still work for EcoHealth, so that's still suspect for us.

Dr. DASZAK. No, no, the NIH employee doesn't work for NIH——

Dr. JOYCE. So, you have documentation that your employees reached out? You have that employee that you could produce for us that made the——

Dr. DASZAK. Every bit of documentation I've got, we've supplied. I think I have a few more other pieces that I can supply.

Dr. JOYCE. I think that's important that you supply that because——

Dr. DASZAK. Yes, absolutely, yes.

Dr. JOYCE [continuing]. We, sitting on this side, are responsible stewards of the taxpayer dollars, but I feel that you at EcoHealth are not responsible stewards of the taxpayer dollars that have been shared for you.

And I feel that, based on the information and based on the actions that we have seen, I believe that you should never receive taxpayer dollars again.

Dr. DASZAK. Well, what's the——

Dr. JOYCE. Thank you, Mr. Chairman, and I yield back.

Dr. WENSTRUP. I now recognize Dr. McCormick from Georgia for 5 minutes of questions.

Dr. MCCORMICK. Dr. Daszak, how much was the grant that you were reinstated—given for?

Dr. DASZAK. I think it was $2.2 million.

Dr. MCCORMICK. OK.

Dr. DASZAK. Some of the money was never reinstated.

Dr. MCCORMICK. OK. Your understanding, the risk of bat coronavirus emergency grant was eventually reinstated by the National Institute of Allergies and Infectious Diseases, despite the fact that Wuhan Institute of Virology was barred from receiving Federal funds. I think that was just discussed ad nauseam——

Dr. DASZAK. Yes.

Dr. MCCORMICK [continuing]. So, I won't kind of go into too much detail on that.

But your grant was reinstated based on probably advice that you got from some people, and I just want to kind of go into that a little bit.

Did you have any conversations about your grant reinstatement with Dr. David Morens, the senior adviser to Dr. Fauci?

Dr. DASZAK. I don't know.

Dr. MCCORMICK. You don't know if you had a discussion?

Dr. DASZAK. I don't know. Probably. I don't know. I'd have to check my records.

Dr. MCCORMICK. Did Dr. Morens ever give you any advice on how to reinstate your Federal funding?

Dr. DASZAK. Oh, yes. I mean, I asked everybody who had any knowledge about the way NIH works on any possible strategy to——

Dr. MCCORMICK. So, you did have discussions?

Dr. DASZAK. With many, many scientists——

Dr. MCCORMICK. OK.

Dr. DASZAK [continuing]. Both those at NIH and elsewhere, yes.

Dr. MCCORMICK. So, were you aware that Dr. David Morens was communicating with you on his personal Gmail account to avoid FOIA and public accountability?

Dr. DASZAK. I was aware that he was communicating with me on his personal Gmail account sometimes, yes, for personal matters.

Dr. MCCORMICK. So, a personal matter about reinstating a public grant?

Dr. DASZAK. Well, it's not his job to reinstate it.

Dr. MCCORMICK. Got it.

Dr. DASZAK. This was me asking his advice as a friend and colleague——

Dr. MCCORMICK. About reinstating a Federal grant. Got it.

Dr. DASZAK. Yes. I mean, we——

Dr. MCCORMICK. Do you even find it problematic that a senior adviser of Dr. Fauci, the head of NIAID, was communicating with you on Gmail rather than an official capacity about an official grant?

Dr. DASZAK. Well, when I'm talking to him by email about personal and security issues and political attacks——

Dr. MCCORMICK. Security issues? So, you talked with him security on his Gmail account?

Dr. DASZAK. Yes, I talked to him about the attacks on my house.

Dr. MCCORMICK. OK. Officially—when your grant was officially terminated in April 2020, do you think that Dr. Morens undermined NIAID's decision by advising on how to get it reinstated?

Dr. DASZAK. Well, if that were true, then everybody else at NIH who advised me on how to get it reinstated, including the official reinstatement procedure, would also have undermined——

Dr. MCCORMICK. Fair enough.

Dr. DASZAK [continuing]. Stop it getting reinstated.

Dr. MCCORMICK. Did you make any assertions that you would be able to obtain information from the Wuhan Lab in regards to your research when you were trying to get your reinstatement of the grant?

Dr. DASZAK. The assertion was that the U.S. taxpayer, who funded the work we did in Wuhan, would get a fair shot at then getting that information and making it public to protect the U.S. taxpayer from future coronavirus threats. That's a very valid and noble——

Dr. MCCORMICK. So, you assume that you would have access to that information. Is that correct?

Dr. DASZAK. We already had access to——

Dr. MCCORMICK. Do you have access to it now?

Dr. DASZAK. After a certain day, we had access to genomic sequences from Wuhan, yes. Yes, we do.

Dr. MCCORMICK. OK. Where are those samples today?

Dr. DASZAK. I'm talking about sequences, not samples. This is exactly as I was saying earlier. People commonly make that mistake.

And the samples are in the freezers in Wuhan. The sequences, the genetic information——

Dr. MCCORMICK. So, you have access to the sequences, not the samples?

Dr. DASZAK. Yes, I do.

Dr. MCCORMICK. OK. Very good.

Dr. DASZAK. And I stated that clearly to NIAID all the way through the negotiations. I also stated clearly we did not have access to the sample——

Dr. MCCORMICK. OK.

Dr. DASZAK [continuing]. They were in the freezer. They will probably remain there.

Dr. MCCORMICK. And Wuhan is no longer receiving any tax dollars, correct?

Dr. DASZAK. Correct.

Dr. MCCORMICK. OK. When it comes to your research—and I know that we're talking some semantics, but I understand the sequencing—by the way, have you ever found any consequential sequence of this virus in the bats that you've studied?

Dr. DASZAK. Yes, we found a lot of consequential sequences, yes.

Dr. MCCORMICK. So, in other words, are you finding that coronavirus that's infected human beings in the bat population in general that's continued to survive?

Dr. DASZAK. Oh, no. No, that's a different question.

Dr. MCCORMICK. OK. Yes. So, I would make the case that maybe from the very beginning—and we've talked about this ad nauseam, I think—we haven't found it in any animal samples despite massive research to begin with.

And yet we continue to pour millions of dollars into something that should exist—as a physician, as a physician that just talked to you before, we spent millions and millions of dollars and hundreds of samples for different species all over China and have no evidence that it's in a—in an animal origin, but yet we continue to send millions of dollars to try to find evidence that now we can't get to essentially. And that's really what you're here for, is, that's why we're upset, that we feel like that this grant was misrepresented, it was seeking information from the wrong source to begin with, and that the grant—principle of the way we get our grants was misrepresented too, and that's what we're all kind of angry about right now.

Dr. DASZAK. Well, the grant was scored in the top 3 percent of grants in that review period. It was considered high impact and——

Dr. MCCORMICK. And that's exactly the problem, sir. That's exactly the problem.

Dr. DASZAK. No, it was scored that well because it is high impact——

Dr. MCCORMICK. I don't know why it was scored that well, but I would disagree with you vehemently, and that's why I think we're here to make a statement on it.

Dr. DASZAK. But I think I pointed out in my opening statements that we had, from the work we've done in China, we now have lab assays that can be tested against vaccines, drugs, and therapeutics to fight COVID to save people's lives. That's how science works.

Dr. MCCORMICK. I yield.

Dr. WENSTRUP. I now recognize majority staff for not more than 30 minutes of questions.

Majority COUNSEL. Thank you, sir.

Dr. Daszak, my name is Mitch Benzine. I'm the staff director for the majority staff. I have a number of questions but want to follow-up on some of the questions that the Members asked over the last couple of hours.

In response to Mr. Griffith pointing out that you were still making edits to the year 5 progress report 7 months past its due date, the year 5 progress report is only supposed to contain information from year 5. Is that correct?

Dr. DASZAK. The NIH requested the year 5 progress report 2 years late——

Majority COUNSEL. No, no, no. It was due September 30, and it covered——

Dr. DASZAK. Yes.

Majority COUNSEL. [continuing] The grant period of 2018 to 2019, correct?

Dr. DASZAK. Yes. Yes, yes.

Majority COUNSEL. So, the report is not supposed to cover information outside of that grant period?

Dr. DASZAK. Well, I think NIH is always happy to receive any information they can on research you're doing that has relevance to the goals. There are no strict rules on that.

Majority COUNSEL. You testified that you were editing it because you gathered more information, but that information should have gone into the year 6 report.

Dr. DASZAK. No, what I said—and I wasn't allowed to finish—what we did was, we analyzed the data, and we came up with an estimate of how many people likely infected per year.

We eventually published that information. It's about 60,000—the estimate in the year 5 report was then revised again—it's about 60,000 people a year, across an area that includes 300-plus million people.

So, both things are correct, that this is a rare event, and it infects a lot of people every year.

Majority COUNSEL. I appreciate that. I have some more questions about it, but we'll get to it. You've testified here today that, on the year 5 report being delayed, that an employee of EcoHealth made a phone call to NIAID. Who is that employee?

Dr. DASZAK. I don't know. It was one of our admin staff. It might've been Aleksei Chmura, Dr. Chmura. It might've been other people who were working there at the time. It would've been from one of their phones.

We've looked at the records, we can't find it, but we believe there were repeated phone calls to Saddayah Girma , to—who was the grant management officer at the time. There were repeated emails—I've got the list of them here—and she never responded.

Majority COUNSEL. And then one question that wasn't touched on by the Members, is EcoHealth currently drafting a laboratory standard or biosafety manual?

Dr. DASZAK. For field biosafety, yes.

Majority COUNSEL. And you're pitching it to the CDC?

Dr. DASZAK. We're not pitching it. We're going to make it public for everybody in the world to see.

Majority COUNSEL. You're asking the Federal Government to adopt it, though, correct?

Dr. DASZAK. Well, we're simply putting it out there, and if people want to use some of those rules, that's great because it's the very highest standard of field biosafety there is.

Majority COUNSEL. Have you met with the CDC regarding the manual?

Dr. DASZAK. I think that the person writing it has spoken with CDC and talked to them about it, yes, and WHO and others.

Majority COUNSEL. You also referenced that the biosafety standards in the U.S. and China were similar for the work that you were doing. What document were you referencing?

Dr. DASZAK. It's the BMBL, Sixth Edition, Biosafety in Microbiological and Biomedical Laboratories, Sixth Edition. Page 452.

Majority COUNSEL. Has the Chinese Government memorialized the BMBL?

Dr. DASZAK. They have their own—in fact, every country has its own national standards. There's no one global standard. But we looked at those national standards, translated them from Mandarin. They are the same.

Majority COUNSEL. In U.S. grants, are sub grantees required to follow U.S. standards or foreign country standards?

Dr. DASZAK. I believe U.S. grantees working in labs in the U.S., would follow biosafety standards for the U.S. I believe that labs that are funded through the U.S. Government in foreign countries would probably follow their national standards. And, if there were discrepancies between those and the U.S. standards, some arrangement would have to be made, some negotiation or debate with the funding agency.

That was not the case in our work.

Majority COUNSEL. I appreciate that.

Dr. DASZAK. They're the same. The standards are the same. They're right there.

Majority COUNSEL. I would also appreciate it if you can produce the——

Dr. DASZAK. Of course.

Majority COUNSEL. [continuing] The original Mandarin version of the Chinese document.

Dr. DASZAK. We'll dig it up.

Majority COUNSEL. You testified to, I forget which Member it was, but you testified every bit of documentation I have, I have supplied. That's patently——

Dr. DASZAK. For what aspect?

Majority COUNSEL. That's all you said. I——

Dr. DASZAK. OK. But what was it in relation to? And then I can understand what——

Majority COUNSEL. I believe it was in relation to the year 5 report.

Dr. DASZAK. Yes.

Majority COUNSEL. Have you supplied drafts of the year 5 report to the Committee.

Dr. DASZAK. I'll have to check. I think so, yes. I'll check.

Majority COUNSEL. The answer is no. Instead of supplying the drafts, you supplied a link to the FOIA library.

Dr. DASZAK. Which has drafts in it.

Majority COUNSEL. No. But we asked——

Dr. DASZAK. We will check.

Majority COUNSEL. [continuing] For the documents. It is your responsibility to——

Dr. DASZAK. We will absolutely provide those pretty quickly. Not a problem.

Majority COUNSEL. All right. I'm going to go through some of the questions for documents that we have previously asked that we have not received yet.

In EcoHealth's custody do you have communications with HHS regarding the reinstatement of your R01?

Dr. DASZAK. Yes.

Majority COUNSEL. In EcoHealth's custody, do you have communications with HHS regarding the suspension or debarment of the Wuhan Institute.

Dr. DASZAK. Not to my knowledge.

Majority COUNSEL. In EcoHealth's custody, do you have communications with the Wuhan Institute regarding its suspension or debarment?

Dr. DASZAK. With the Wuhan Institute.

Majority COUNSEL. Yes.

Dr. DASZAK. Not to my knowledge.

Majority COUNSEL. To the committees, you produced one email between yourself and the Wuhan Institute regarding requesting the laboratory notebooks in response to NIH compliance efforts. Is that the entirety of the communications you have regarding that issue?

Dr. DASZAK. Yes.

Majority COUNSEL. You never followed up.

Dr. DASZAK. Well, we never received a response. We were told by NIH not to communicate with him, not to work with them. And I believe HHS wrote to them but by UPS, and it was sent back with return to sender.

Majority COUNSEL. That was with the debarment memo. That wasn't a request for laboratory notes.

Dr. DASZAK. But I believe——

Majority COUNSEL. I'll get back to the laboratory notes.

Dr. DASZAK. Yes.

Majority COUNSEL. We touched on the progress reports.

Do you have any communications in EcoHealth's custody regarding the renewal of the R01?

Dr. DASZAK. Yes.

Majority COUNSEL. With the WIV.

Dr. DASZAK. I'll check. Probably. I don't know.

Majority COUNSEL. Did you notify the WIV that they were no longer on your grant?

Dr. DASZAK. Oh, you mean did we get—I'll check. Probably, yes.

Majority COUNSEL. Have you ever communicated regarding the issues we've discussed today on an email other than your EcoHealth email.

Dr. DASZAK. No.

Majority COUNSEL. On April 12, 2024, in response to a letter from Chairman Wenstrup to Boston University, you released some emails on your website. I want to discuss one of them. It's between you and Dr. Morens, who we've talked about, and the date of the email is April 26, 2020. It was 2 days after your grant was terminated.

And in this email, you wrote, "David, we will communicate with you via Gmail from now on."

Was it he that suggested using his Gmail, or was that you telling him to only use his Gmail?

Dr. DASZAK. I'm not sure, but I believe he—he's repeated said to me by phone and emails and elsewhere that for stuff that's not his official business, he prefers to receive it to his Gmail. So, I'm going to comply with that.

Majority COUNSEL. And that's consistent with what you testified previously. You said, And when I would write to Dr. Morens about official NIH-related issues, I would use his NIH address. When I wrote to him about personal matters that weren't part of his job, to my understanding, I would use his Gmail.

That email that you released discussed setting up a call with NIH officials about your grant, how to respond to your grant termination, why your grant work was important, the official NIAID strategic plan, and how you spent your money pursuant to a federally funded grant. Those are all NIH-related.

Dr. DASZAK. But I wasn't requesting David Morens to set up a call for me. That would have been official——

Majority COUNSEL. You have a misunderstanding of Federal record retention laws. He is discussing his official business. He needs to——

Dr. DASZAK. Again, that's David Morens' business. I don't know why he does that. He explained to me for personal stuff use Gmail, for official business, use NIH.

His official business is to advise the director of NIAID, and there are many, many emails that I've sent him that gives him information to pass on to the director of NIAID to inform them on emerging diseases. This wasn't that. This was about a grant that had been terminated by the President of the United States. We had no idea——

Majority COUNSEL. Sir, that's also not true. It was terminated by Dr. Lauer.

Dr. DASZAK. Well, I heard the President of the United States say, I will end it quickly. Within a week it was gone.

Majority COUNSEL. And Dr. Collins testified under penalty of perjury that he agreed with every action that was taken against you. This was not ended by the President of the United States.

When was the last time that you spoke with or otherwise corresponded with Dr. Morens?

Dr. DASZAK. Probably yesterday.

Majority COUNSEL. Did you discuss how you would testify today?

Dr. DASZAK. No.

Majority COUNSEL. OK. Shifting to the outbreak of COVID–19, China first reported an unrecognized pneumonia December 31, 2019, and China did not mention that it was a coronavirus in that report, just undiagnosed pneumonia. They didn't identify it as a

coronavirus until January 7 and then did not share the sequence until January 11.

When did you first hear about the virus?

Dr. DASZAK. I first heard rumors about a virus on December 30, 2019.

Majority COUNSEL. Who told you?

Dr. DASZAK. Someone in China told me.

Majority COUNSEL. What do they do?

Dr. DASZAK. Oh, they work in public health.

Majority COUNSEL. For who?

Dr. DASZAK. I think they're a free agent. They run their own company or their own business.

Majority COUNSEL. What company?

Dr. DASZAK. I don't know, sir. I would have to check in my records.

Majority COUNSEL. And you——

Dr. DASZAK. I mean, bear in mind, the people in China creating rumors about this were later on arrested and put under severe penalty.

Majority COUNSEL. No, I understand.

Dr. DASZAK. I mean, we didn't know how verifiable that information was. I didn't publish it. So, we just were trying to find out what we could.

Majority COUNSEL. And you testified previously that this person—I told you that they had identified a coronavirus that was not SARS, but was 20 percent different. Is that correct?

Dr. DASZAK. Yes.

Majority COUNSEL. And COVID–19 is almost 20 percent or a little bit more?

Dr. DASZAK. Oh, yes, it was incredibly accurate data in the end. When we looked back on it, they were right.

Majority COUNSEL. When you were told this, did you inform the U.S. Government?

Dr. DASZAK. Well, at the time I was told it, it was a rumor and a myth. So no, that would have been a mistake. What I did do was publish it the next day, make a statement publicly on Twitter. And I also informed ProMED, ProMED-mail, which is a widely used system for getting rapid information about outbreaks out to the world. They'd already heard the same rumors. They published it the next day as well.

Majority COUNSEL. But they were still publishing undiagnosed pneumonia, not coronavirus?

Dr. DASZAK. No, but they—well, I'm not sure what they said on the next day, but I think we both put out important communications that something is going on, we need to know more about it.

And then I think I talked about our coronavirus research, kind of hinting heavily this may be coronavirus, but we couldn't verify it. So, to tell the public that it's a coronavirus would have been a huge mistake. What if it turned out not to be?

Majority COUNSEL. Dr. Eddie Holmes and Dr. Jeremy Farrar said they have information that the virus was sequenced prior to Christmas by a U.S. genomics company.

Does that track with your understanding—or by a Chinese genomics company. Excuse me.

Dr. DASZAK. From what I know now, I believe that's where the information I got came from is from the sequence data from a private sector company that was doing the work for the Wuhan investigation.

Majority COUNSEL. If they had sequenced it prior to Christmas, they would know that it was a coronavirus, correct?

Dr. DASZAK. Someone would. Well, they would be highly suspicious that it was. You'd need to verify it. I mean, don't forget, whenever there is a new outbreak of something, we have to verify and verify it before you go public.

The same thing is happening now with, for instance, avian flu, fragments of RNA in milk. It would be reckless and a problem for public health to say there's virus in the milk until you verify whether there is or isn't. It's the same story with this.

Majority COUNSEL. I'm going to shift gears back to the Wuhan Institute. Prior to the pandemic, was the Wuhan Institute attempting to start a live bat colony?

Dr. DASZAK. Apparently so.

Majority COUNSEL. Did you have any firsthand knowledge of that?

Dr. DASZAK. Not at the time I publicly stated that it wasn't, no.

Majority COUNSEL. In addition to bat samples, to your knowledge, was the Wuhan Institute also analyzing pangolin samples?

Dr. DASZAK. I'm not sure, but I do know that there was someone in China we met, a Dr. Tong, who seems to have heard of a pangolin-positive coronavirus earlier and was working on it and getting it ready for publication, yes.

Majority COUNSEL. Does——

Dr. DASZAK. I'm not sure if he works with the WIV or not.

Majority COUNSEL. Does the Wuhan Institute have the ability to genetically engineer viruses without leaving a trace?

Dr. DASZAK. I don't know.

Majority COUNSEL. You touched on this a little bit in your testimony, and mentioned the 2020 paper where the primary author was Alice Latinne.

Dr. DASZAK. Yes.

Majority COUNSEL. And testified previously to us, To the best of my knowledge, I'm fairly confident this is the case, that every genetic sequence of SARS-related coronaviruses that the WIV had, both from our work that we funded and from any work they'd done separately, was in a paper that we submitted to a U.S. journal and we'd submit into the U.S. NIH data base, Genbank. There were a few after the fact that we got from the WIV, and I put into Genbank, and we notified NIH later on, only a handful.

And sitting here today, you're still fairly confident that every genetic sequence of SARS-related coronaviruses the WIV had was published in the Latinne paper?

Dr. DASZAK. Yes.

Majority COUNSEL. What was the time scope and the methodology of the Latinne paper?

Dr. DASZAK. Well, it was the methodology we had used in China for over the last 15 years.

Majority COUNSEL. No. What was the time scope of the samples?

Dr. DASZAK. I'm not sure. I think it's 2010 to 2015 or something. I'm not sure. I would have to check.

Majority COUNSEL. Did the Wuhan Institute collect samples after 2015?

Dr. DASZAK. I don't know.

Majority COUNSEL. Is it possible that the Wuhan Institute collected samples after 2015?

Dr. DASZAK. Yes.

Majority COUNSEL. Is it possible that the Wuhan Institute hasn't analyzed these samples?

Dr. DASZAK. Yes.

Majority COUNSEL. Is it possible that they haven't published these samples?

Dr. DASZAK. Yes.

Majority COUNSEL. So, is it possible that you didn't actually publish every virus the Wuhan Institute has?

Dr. DASZAK. What I said to you is that we published every virus of relevance to SARS coronaviruses from our work in China——

Majority COUNSEL. No. You said from your work and the Wuhan Institute provided you the samples that they collected.

Dr. DASZAK. OK. So, it's possible that they have hidden some viruses from us that we don't know about yet, of course.

Majority COUNSEL. All right.

Dr. DASZAK. Of course.

Majority COUNSEL. I appreciate that.

Dr. DASZAK. That's to the best of my knowledge. I'm trying to help in any way I can.

Majority COUNSEL. Do you know if the Chinese government deleted any sequences or samples?

Dr. DASZAK. I don't know.

Majority COUNSEL. We've discussed your grant work a lot, and you've stated unequivocally many times today in private testimony publicly that EcoHealth did not fund the WIV to conduct gain-of-function research.

This has been directly contradicted by witness testimony. Dr. Tabak testified that while your research did not meet the definition to be regulated by the P3CO, it did fall under the function of gain-of-function.

And Dr. Baric, who is a world renowned coronavirologist and expert in gain-of-function, testified that the work described in your year 5 progress report was, quote, "absolutely a gain-of-function phenotype." And he went to far as to say as, quote, "You can't argue with that."

You disagree with them?

Dr. DASZAK. Well, I have a letter from NIH that says our work is not gain-of-function. You have testimony from Dr. Baric who says absolutely it was. Both are there. I mean, I tend to go with the regulatory authority on this, which is NIH.

Majority COUNSEL. All right. During its compliance efforts with your grant, NIH requested you provide the underlying lab notebooks from the WIV. You responded that you did not have access to them, but that you would ask the WIV.

Did you know that you had to have access to them under your grant terms?

Dr. DASZAK. Well, we checked on that, and at the time that we requested the lab notebooks, it is not true that we had to have access to lab notebooks in a foreign subrecipient. That rule then came into play from NIH later and——

Majority COUNSEL. Dr. Tabak testified that it was part of the standard grant terms and policies at the time of your grant.

Dr. DASZAK. Well, as I said, we checked——

Majority COUNSEL. So, you disagree with him?

Dr. DASZAK. We checked the CFRs. We've received dozens of letters from NIH with listing CFR, Codes of Federal Regulations. We check them all. They do not state that. It's a fact.

Majority COUNSEL. You said here—and we have the email——

Dr. DASZAK. And we did try to get them, by the way.

Majority COUNSEL. Well, "try" might be a strong word.

We previously discussed the one email that you sent to the WIV where you forwarded the letter to Dr. Shi and said that you could answer question No. 1, but you can't answer question No. 2.

You never actually requested the lab notebooks. You just forwarded the letter. You testified a few minutes ago that the WIV never responded to that email?

Dr. DASZAK. Correct.

Majority COUNSEL. And you never e-mailed again?

Dr. DASZAK. Correct.

Majority COUNSEL. Why not?

Dr. DASZAK. Because, clearly, the WIV is not going to respond further. I'm happy to email them again if you want me to.

Look, we were instructed by NIH to terminate our work with the WIV. In 2020, we then had our grant terminated. We then had huge geopolitical issues between the U.S. and China, very specifically around the origins of COVID. And we were then requested by NIH to do something that isn't in the Code of Regulations, and that's to request lab notebooks. We did that. The WIV did not respond. We will do it again, and I predict they will not respond again, if you wish me to.

But look, every time we act as an agent for the U.S. Government in seeking things that are not required by Codes of Federal Regulations, we put our own staff at risk around the world. But we're happy to do it again if you so wish.

Majority COUNSEL. There's a dispute whether or not an experiment was conducted in year 4 or year 5. It's the experiment that Dr. Tabak reported to Congress that's been——

Dr. DASZAK. There's no dispute. It was conducted in year 4.

Majority COUNSEL. Do you have the dates?

Dr. DASZAK. We submitted the results from the experiment back in 2018, I think, so it was just prior to that submission.

Majority COUNSEL. You submitted it in the year 4 report?

Dr. DASZAK. Correct, yes.

Majority COUNSEL. NIH disputes whether or not those are the same experiments.

Do you have the date that the experiment was conducted?

Dr. DASZAK. No. And, again, this is another issue of—this is something that I could ask WIV, and it's highly unlikely we're going to get a response.

Majority COUNSEL. When Dr.——

Dr. DASZAK. They're debarred from the Federal Government. I mean, you put me in a very unusual position to go back 10 years to a debarred agency asking them questions which we know the Chinese Government are not interested in answering.

Majority COUNSEL. When Dr. Lauer started compliance efforts, did you reach out to Dr. Shi and ask her if it occurred in year 4 or year 5?

Dr. DASZAK. Did I ask Dr. Shi what?

Majority COUNSEL. If the experiment in question occurred in year 4 or year 5?

Dr. DASZAK. Oh, yes, yes.

Majority COUNSEL. What did she say?

Dr. DASZAK. She said that—I asked her—let me just respond by saying every single request, every single theory, no matter how bizarre a conspiracy theory or a real hypothesis, something unusual that had gone on in China, we check on those. We check everything.

And at the time when NIH suggested that the year 5 experiment was different to year 4, I checked, and we were told by WIV that it was the same experiment dealing with the pathological findings from the same——

Majority COUNSEL. Did you verify it with the underlying experiment notebooks?

Dr. DASZAK. It's impossible for us to do that. We don't have those.

Majority COUNSEL. But at that point you could have?

Dr. DASZAK. No. It was the same situation. This is at a time when our grant was suspended with onerous conditions that included identifying where an allegedly missing person was from WIV, going to China and seeking a vial of virus to return to the U.S. These things are illegal.

Look, it was a very difficult position to put a grantee in and to be requesting that.

Majority COUNSEL. So, you took Dr. Shi's word for it that they were—you didn't have any proof at the time of the year 4 experiment that——

Dr. DASZAK. I have no other way to verify.

Majority COUNSEL. You were asked by Ms. Tokuda about access to samples previously paid for by the U.S. Government. And I want to read the exact testimony from Dr. Erbelding, so that you can understand what we're working off of.

The question: Did EcoHealth—was it EcoHealth that told you they had the samples?

Answer: They did. They did give me an approximate number. I don't recall what it was.

Question: Did they tell you that the samples were in their possession?

Answer: I believe I asked, You have access to these samples? Do you have access to these samples? I think that, to the best of my recollection, that's how I phrased the question, and I got an affirmative answer.

Question: You asked, Do you have access? And they responded, Yes?

Answer: This was Peter Daszak, yes.

Question: There wasn't an elaboration on the yes?

Answer: I did not ask further questions. I took his representation as truthful.

You testified a couple of minutes ago that you were very forthright with NIH and NIAID that you actually didn't have access to the samples.

Dr. DASZAK. Correct.

Majority COUNSEL. Is Dr. Erbelding lying?

Dr. DASZAK. Dr. Erbelding is—it's the same procedures for them. She says she doesn't recall, I believe, I think that. Clearly, Dr. Erbelding either wasn't in the conversation where I clearly stipulated we do not have access to those samples; we do have access to the sequences, or perhaps she has mistaken sequences for samples. But whatever one might tease apart from her memory, what matters is the record, which is the emails sent to NIH proposing the work to be done and the revised specific names, which clearly state no further samples will be brought out of China and that sequences are already in EcoHealth's possession.

Majority COUNSEL. And we don't have those emails, so——

Dr. DASZAK. We will happily share them with you, of course.

Majority COUNSEL. And the samples are still in the custody of the Wuhan Institute?

Dr. DASZAK. Well, unless they're not. But to the last of my knowledge, they were in the freezers in Wuhan, over 15,000 of them.

Majority COUNSEL. Is there a benefit to having the samples versus just the sequences? You can, in essence, redo an experiment to prove the results, correct?

Dr. DASZAK. And you might find out more information from a deep secret, but at this point we do have an incredible amount of information from those samples.

Majority COUNSEL. And you testified previously that if the Wuhan Institute does more work on those samples that you, quote, "have an understanding to be able to request and gain access to the new data."

Is that memorialized in a memo or contract?

Dr. DASZAK. I don't know. I'll have to check. But, yes, that is the understanding with the sort of—you know, no matter what the politics around the world, scientists from different countries try to maintain open channels of communication. It happened in the cold war. It happens with our rivals and competitors. I think it's very important for the American people that we keep those communication channels open.

Majority COUNSEL. Have you had——

Dr. DASZAK. So, yes, I will try to do that.

Majority COUNSEL. Have you had to request access to any new data?

Dr. DASZAK. No. But we've been able to get new data, yes.

Majority COUNSEL. From them?

Dr. DASZAK. From China, yes.

Majority COUNSEL. With using—from the Wuhan Institute?

Dr. DASZAK. From the Wuhan Institute of Virology, of course.

Majority COUNSEL. And you testified a little bit earlier that you've had communication with——

Dr. DASZAK. I might add that we've got 17 years of research we've done there. Some of it is not yet published. The new data comes in the form of, here's a publication to be made public, and that's a very valuable and important resource.

Majority COUNSEL. And you testified earlier that you have had communication with the Wuhan Institute in furtherance of the reinstated R01 grant?

Dr. DASZAK. I'm not sure that it was in furtherance of the restatement.

Majority COUNSEL. Or if you're requesting data that you were paid for by the United States to analyze, then that would be in furtherance?

Dr. DASZAK. The communications I've had with Wuhan are typical scientific collaborative——

Majority COUNSEL. No. Have you had any communications with the Wuhan Institute that would impact your R01 grant?

Dr. DASZAK. I'm not sure. I'd have to check.

Majority COUNSEL. OK.

Mr. DASZAK. I mean, I'm just not sure.

Majority COUNSEL. Are you aware that the Wuhan Institute is not just procurement debarred; they are nonprocurement debarred as well?

Dr. DASZAK. I don't know what that means, but I'll—you'll have to——

Majority COUNSEL. It means that the Wuhan Institute is not allowed to have a substantial impact over any federally funded government activity.

If the Wuhan Institute today canceled your access to samples, would that impact your research?

Dr. DASZAK. Well, we don't have access to samples, so that's a moot point.

Majority COUNSEL. You have access to the data generated from the samples?

Dr. DASZAK. Correct, yes.

Majority COUNSEL. If the Wuhan Institute cutoff your access to the data, would that substantially impact your research efforts?

Dr. DASZAK. Not for the purposes of that R01 because we already have the data in our—at EcoHealth Alliance.

Majority COUNSEL. All right. Yesterday there was an article in the National Review regarding a recently made grant from USAID to EcoHealth Alliance, and a spokesman for EcoHealth gave a long statement, but also said, quote, "EcoHealth is no longer partnering with any Chinese research entities."

Is that true?

Dr. DASZAK. That's certainly for Federal funding, yes, correct.

Majority COUNSEL. That's not what he said. He said, EcoHealth is no longer partnering with any Chinese research entities.

Do you have any partnerships with any Chinese——

Dr. DASZAK. I don't believe right now we have any contractual relationships with any organization in China.

Majority COUNSEL. But you're going to——

Dr. DASZAK. So, I think that's correct, from the way he's speaking, yes.

Majority COUNSEL. You're going to check on if there's a contractual arrangement regarding the data from the unanalyzed samples?

Dr. DASZAK. There's no contractual relationship.

Majority COUNSEL. So, it's just a gentleman's agreement that the Chinese Communist Party will give the U.S. what we request?

Dr. DASZAK. I'm not speaking with the Chinese Communist Party. I'm speaking with scientists.

Majority COUNSEL. Well, that might be disputed.

On April 16, 2020, you tweeted, "The WIV did not have a culture of a virus related to SARS-CoV–2, so it is impossible for accidental release being the source."

You've testified a lot today that you don't know what was going on at the WIV, you don't know all the viruses they have, you don't know all the samples they have, that you don't know all the research. So, you don't know that it is impossible for accidental release being the source?

Dr. DASZAK. Well, what we do know is prior to the outbreak, we asked the WIV for every single SARS-related bat coronavirus sequence. Not only did they share the ones from what we were doing together, they also shared——

Majority COUNSEL. Sir, this is the Latinne paper that only goes to 2015.

Dr. DASZAK. Well, let me finish my point.

They also shared data from work they had done themselves without our involvement. So, I think that was very important. If they had any of the sequences at the time, surely they would have been in that data dump and——

Majority COUNSEL. And that data dump is what was published in the Latinne paper, correct?

Dr. DASZAK. Correct, yes.

Majority COUNSEL. So, that only went to 2015.

Did you ever request all of their SARS-related sequences and samples from 2016 to 2019?

Dr. DASZAK. I requested those data prior to the outbreak in something like November-ish or fall of 2018. We then went back and repeated throughout the process backward and forwards. Any other data that came would have been requested in 2020. So, yes, we did that.

Majority COUNSEL. So, the Latinne methodology is wrong? Latinne actually published samples—sequences that were post 2015?

Dr. DASZAK. No. The data from the samples, that's what I'm talking about. The samples were collected prior to, from my understanding.

Majority COUNSEL. OK. On February 10, 2021, you sent a letter to congressional leadership that stated, Zoonotic spillover is the origin of most infectious—emerging infectious diseases, including COVID–19.

This is again unequivocal, but you didn't actually know?

Dr. DASZAK. Sorry, to congressional leadership?

Majority COUNSEL. Yes. You sent a letter to congressional leadership. It was Speaker Pelosi, Leader Schumer, Leader McConnell, and Leader McCarthy.

Dr. DASZAK. Yes.

Majority COUNSEL. And stated, Zoonotic spillover, the transmission of novel pathogens from animals to humans, is the origin of most infectious—emerging infectious diseases, including COVID–19.

But the origin is in dispute. That sentence is incorrect?

Dr. DASZAK. But it's pretty crystal clear and undisputed that this is a zoonotic virus. And the most close relatives are from animals, so therefore, it's a zoonotic virus.

Majority COUNSEL. All right. March 8, 2023, in response to a hearing this Subcommittee had and multiple times since, including today, you've said regarding the DEFUSE proposal, quote, "The proposal was not funded and the work was not done."

Did you ever solicit private funding for anything regarding DEFUSE?

Dr. DASZAK. No.

Majority COUNSEL. Do you know if the work—WIV started this work?

Dr. DASZAK. No.

Majority COUNSEL. Then you can't say that the work was not done?

Dr. DASZAK. There's no evidence of the work being done. There's no evidence that WIV started it. There's no evidence that any of the other contractors on the ground started it.

Majority COUNSEL. Did you ask?

Dr. DASZAK. I think everyone has been asked at this point repeatedly by——

Majority COUNSEL. Did you ask Dr. Shi if she had started any of the proposed work?

Dr. DASZAK. No. But again, I'm happy to send an email to Dr. Shi and say, Did you begin the work that was proposed in the DEFUSE proposal? She might not even remember the DEFUSE proposal at this point. I doubt that I would receive a response.

Majority COUNSEL. One of the things that the Select Subcommittee has been investigating is that it matters what public health officials write down and what they say. When you make unequivocal statements that can't possibly be supported by the evidence, it matters.

Dr. DASZAK. So, what was your unequivocal statement again, please?

Majority COUNSEL. The proposal was not funded and the work was not done.

Dr. DASZAK. The work in the proposal has not been done, but——

Majority COUNSEL. But you just said you didn't know if the WIV did it.

Dr. DASZAK. We—the work in the proposal designates which groups do the work. That work has not been done. We have delayed the work. Ralph Baric's group hasn't done any of the work. The organization that was going to spray some residue hasn't done the work, to my knowledge. All of this is to my knowledge. I mean, you know, obviously, one can't know everything.

Majority COUNSEL. Then I would suggest clarifying that going forward.

Dr. DASZAK. Well, then I'm clarifying it right here and now. To the very best of my knowledge, with strong evidence, the work hasn't been done.

Majority COUNSEL. And my last question, on March 6, 2024, you tweeted, The lab leak theory for COVID origins is evidence-free.

But when testifying regarding submitting your year 5 progress report late and the fact that Dr. Lauer couldn't find evidence to support your claims, you testified "just because he can't find evidence of that doesn't mean it's not true."

Do you stand by that testimony?

Dr. DASZAK. The lab leak is evidence-free. I——

Majority COUNSEL. No. That just because someone can't find evidence of something does not mean it's not true. That's what you said regarding the grant.

Dr. DASZAK. Well, I have a very particular knowledge about Dr. Lauer's inquiry. We did contact those authorities at NIH, and his forensic analysis did not go to checking phone calls. He said it in his testimony. So, that's why I stated that, and I think that stands.

Majority COUNSEL. The last things I'll say, I apologize, but you've been asked by a number of Members, including the Ranking Member, about the letter that you authored in the Lancet, and you said that you were discussing primarily HIV inserts and snake DNA.

I want to read for the record what you actually wrote. It's, We stand together to strongly condemn conspiracy theories suggesting that COVID–19 does not have a natural origin.

Thank you, sir.

Dr. WENSTRUP. I now recognize minority staff for not more than 30 minutes of questions, maybe 31, since we went over here.

Minority COUNSEL. Thank you, Mr. Chairman.

Dr. Daszak, thank you for coming in today. I think maybe I'll just pick up right where the majority left off.

That Lancet letter, we've talked about it a few times today. I'll read just one more time that very same sentence. "Standing together to condemn conspiracy theories suggesting that COVID–19 does not have a natural origin."

So you talked about snakes, and you talked about HIV. I don't see either of those words in that sentence or in the letter. Why is that?

Dr. DASZAK. Because there's a word limit on letters to Lancet. They're not going to allow you to just bang on for a long period of time. Look——

Minority COUNSEL. I'm sorry. If I could follow-up on that.

Dr. DASZAK. Let me follow-up first. At the time we submitted that letter, the prevailing theories, other than this came from a bat through a zoonotic spillover, were HIV inserts bioengineered, I think snake DNA, and a bioengineered bioweapon virus. All of those are conspiracy theories.

The intelligence agency stated that clearly at the beginning of that report that there is no evidence to support that, there never was, and there still isn't.

Minority COUNSEL. That's helpful. Thank you.

So I just kind of want to hone in on the exact nature of what you're saying. I think it's that the word limit wouldn't allow you to fit in the word "snake"?

Dr. DASZAK. Well, the word "snake" wouldn't be enough to make any difference. So, it would have to say—for instance, for example, the origin—theories about the virus having snake DNA, or that it's got HIV inserts, or that it's a bioengineered virus, perhaps they were in earlier drafts of the statement, but they're not in that one.

Minority COUNSEL. All right. Well, your——

Dr. DASZAK. And they were the only prevailing theories, other than that it came from a zoonotic spillover——

Minority COUNSEL. Sure.

Dr. DASZAK [continuing]. Which is still the prevailing theory.

Minority COUNSEL. Well, let me finish. As a reader and writer of the English language, how do you think the sentence "COVID–19 does not have a natural origin" reads?

Dr. DASZAK. COVID–19 does not——

Minority COUNSEL. Does not have a natural origin. Do you read that sentence as being limited to snakes and HIV?

Dr. DASZAK. Is that what we said?

Minority COUNSEL. Yes.

Dr. DASZAK. Can you read out of the context of that, please? I'm not sure what you mean.

Minority COUNSEL. Sure. That's not a problem.

We stand together to strongly condemn conspiracy theories suggesting that COVID–19 does not have a natural origin.

Dr. DASZAK. Yes. That's what we said then, and we stand by it. At the time that was the right thing to say.

Minority COUNSEL. Do you read that sentence as being limited to snakes and HIV?

Dr. DASZAK. I read that sentence in February 2020 as focusing on those conspiracies that were out there, and they were the ones that were out there.

Minority COUNSEL. That's not quite the question. As the reader of the sentence, how do you read it?

Dr. DASZAK. Well, first of all, you would have to go back in time to 2020, put yourself in the mindset of what was going on back then, which were those prevailing theories, bioengineered virus, snake DNA, and HIV inserts, preposterous, conspiratorial, and without any evidence whatsoever.

Minority COUNSEL. Yes, I just don't think any reasonable reader of that sentence is going to read it that way.

Dr. DASZAK. Well, but the editor of Lancet read it and approved it. 26 of the leading public health authorities in the world read it and agreed with it. 20,000-plus people signed onto that letter on a public statement. Everybody seemed to read it and understand exactly what it meant, and it was correct at the time, and we stand by it.

Minority COUNSEL. You talked a little bit about the DEFUSE application and BMBL.

Dr. DASZAK. Yes.

Minority COUNSEL. And you've talked several times about how the BMBL, you know, either says BSL–2 is appropriate or we've heard elsewhere maybe it doesn't actually have a specific requirement at all.

I think the thing I want to focus on is your testimony to us in November wasn't just about BMBL. You told us that you ensured

that WIV adhered to the same biosafety levels that were used in the U.S., and that were required by the BMBL, and those are two different things. Ralph Baric clearly told you that what is used in the U.S. is BSL–3, and you knew that was not the case in Wuhan.

Dr. DASZAK. Well, Ralph Baric is entitled to his opinion about best practices, which is what he was trying to say in that statement. But I have here the language from BMBL, it says right there——

Minority COUNSEL. Sorry. Yes, we've heard it three or four times.

Dr. DASZAK. OK.

Minority COUNSEL. As I said, that's not quite the same thing as what do scientists actually do in the United States.

Dr. DASZAK. Well, it is actually, because they're the rules that government scientists actually do.

Minority COUNSEL. So, if I follow it, it is that you disagree with Dr. Baric and you don't actually think that it's common in the United States to use BSL–3 for this type of work?

Dr. DASZAK. Ralph Baric may use it for some types of work. He may go above and beyond the BMBL levels. Good for him, and that's good for us, too.

Minority COUNSEL. Do you understand him to be an outlier in that respect?

Dr. DASZAK. There is no outlier. If the rule states something differently—and will just add in the DEFUSE proposal, we did not propose to use BSL–2 for infection experiments with recombinant viruses. We proposed BSL–3s right there in black and white at Ralph Baric's lab, using his high standards, higher than the BMBL requires.

Minority COUNSEL. Yes, I think the concern is more that you point to the BMBL, and I understand that. I think——

Dr. DASZAK. But I thought your job was to oversee this line of research, and these are the rules that oversee them.

Minority COUNSEL. If your collaborator comes to you and says, What we do here in the United States is use a certain level of biosafety, and that's not what they do in China, and people in the United States will freak out, I think that distinction is probably important for somebody in your position.

Dr. DASZAK. Well, I agreed with Dr. Baric, which is why the BSL–3 is in the proposal, not BSL–2.

Minority COUNSEL. The year 5 report has been talked about a few times as well. You said something that I just wanted to follow-up on. You said something to the effect of, Look, there's a record that I tried to submit that report, and that we as a Subcommittee have that record.

I think what you're referring to, which we do have, and which is not quite what you say it is, is a screenshot that your folks initiated the year 5 report on July 24 of that year, and we agree, we have that. We're all——

Dr. DASZAK. From the NIH system.

Minority COUNSEL. Yes. We're all on the same page there. The problem is routing the report, submitting the report is 2 years later. There's no evidence that you submitted the report in 2019.

Dr. DASZAK. Correct, there's no evidence.

Minority COUNSEL. Well, that's not quite what you said about an hour and a half ago, and I think it's those types of little representations——

Dr. DASZAK. What did I say an hour and a half ago?

Minority COUNSEL. You told us that there was documentary evidence that you had submitted the report in 2019.

Dr. DASZAK. What I have here is a timeline with documentary evidence of attempts to submit the report, to open up the system—we had a draft of the report back in June. We tried to get it in the system, and it locked us out. I have the record here.

We will send any of the evidence that you don't yet have, we will send to the Committee.

Minority COUNSEL. Well, I'll distinguish for a starting point, I think we have what you're talking about, and we went over it in November——

Dr. DASZAK. Well, we'll find out. I'll check. It might be something that you don't have yet.

Minority COUNSEL. I think it's safe to speak for both sides here to say that if we don't have what you're talking about, then at this point, that's a pretty big problem as well.

Dr. DASZAK. What do you mean?

Minority COUNSEL. If you have extra documents on the year 5 issue that you have not handed over——

Dr. DASZAK. I'm talking about we've reviewed all of our systems to try and find information to see if we've got any evidence at all if that report was uploaded, which we know it was. We know we had had an inability to get through to the system. It locked us out. And I'm looking for evidence we may have somewhere that you don't yet have. We will find it and send it to you.

Minority COUNSEL. OK. I just want to be really clear that the documentary evidence we do have that I think you might be talking about shows that you all opened up this system——

Dr. DASZAK. I know that, yes. Yes, I have that written——

Minority COUNSEL. It does not show that you submitted or attempted to submit the report.

Dr. DASZAK. Right. Well, I'm telling you here, under oath, that we did.

Minority COUNSEL. OK. I would like to pivot to some of the more science-heavy aspects of really what we've already talked about back in November, probably starting with, you had this detailed back and forth with NIAID in the summer of 2016 on the question of whether or not the work you were proposing was affected by the 2014 Federal pause on gain-of-function work.

So NIAID ultimately decided that your work was not affected by that pause. You've said that several times here today. I don't think we have a problem with that decision. I've not heard the majority have a problem with that decision.

So it's not the decision that is in dispute, but I do think we're interested in and would like to focus on some of the arguments you made to NIAID, because their reasoning I think was slightly different from what you were suggesting, so I just kind of want to walk through how you——

Dr. DASZAK. Well, I just want to correct one thing. This wasn't a——

Minority COUNSEL. Wait, wait, wait, wait. Dr. Daszak, I let you finish, and I was happy to. I ask that you do the same.

So those arguments sort of ran in order, and I'd like to touch on them and talk about them.

Dr. DASZAK. Yes.

Minority COUNSEL. The first one I think was pretty easy. It was making the point that the 2014 policy should be viewed as applying to SARS because that's what it says, SARS, but not to the SARS-like viruses that you were planning on working with.

I think we understand that argument and acknowledge that the pause was a little bit unclear from a textual point of view there, so I really don't have too many questions about that.

You then pivoted, though, to talk about WIV1, which I think is that virus that you all were planning to use as a backbone in your experiments. And you said to NIAID that WIV1, quote, "has never been demonstrated to infect humans or cause human disease."

Later in the letter, for other reasons, you included a parenthetical to an article that's called "WIV1 is Poised for Human Emergence," and that article concludes that, quote, "the results indicate that WIV1 has the ability to directly infect humans."

I think it's really hard for us as readers to understand how that context was not addressed in your letter.

Dr. DASZAK. Both can be correct. It is correct that it has never infected people, to our knowledge, but it's also correct that it infects human cells in the lab, not people. There's no evidence of that.

Now, we cite that paper in the response to NIH. NIH is the body that oversees this. If NIH had said, Wait a minute, this paper that you cite yourselves suggests that we need to rethink, we would have not gone ahead with the experiment. Don't forget we proposed alternatives to this work. We send them a paragraph of modeling we could do, pseudovirus work we could do if they decided the work should not go ahead. NIH had every possibility, every reason to go through that and say no if they wanted to, and we would have not done that work.

This is something to ask NIH, not EcoHealth Alliance. We did our best, our best shot at trying to explain why we believe the work was not covered by the gain-of-function, as they asked us, what alternatives we could do, and then it's NIH that makes the decision on that.

Minority COUNSEL. Yes. So, you cited the article for a different reason. You would have had to open the article and read it to appreciate what I just quoted from it. And I understand that I think you're drawing a distinction between human cells in the lab and a human receptor in a lab.

Dr. DASZAK. A big distinction.

Minority COUNSEL. So, I think the eventual conclusion of that is it does not count until a live human walks in and drops to the ground sick?

Dr. DASZAK. No, until it infects a person.

Minority COUNSEL. Uh-huh.

Dr. DASZAK. There's a big difference between infecting a cell in a lab.

And also you point out that you would have to read—open the paper and read it. Surely, the NIH system that deliberates on

these issues actually opens up the papers and reads them, as do scientists. I mean, we assume that this group is doing it. They know the literature. They are going to make a knowledgeable decision based on their knowledge of the literature which we cited in our letter to them.

Minority COUNSEL. Yes. So, the concern is less on the back end of the reader of your letter, because we do assume that those folks are knowledgeable and they'll open the article. The concern is more on the front end as a grantee that that article is out there and you didn't say anything about——

Dr. DASZAK. We cited it.

Minority COUNSEL. You cited it for a different reason.

Dr. DASZAK. We listed the paper in our list that went to NIH.

Minority COUNSEL. Yes, you did. You managed not to include the title of that paper in your email I noticed.

Dr. DASZAK. Well, if the citation is there, the title will be there. If not, they can look it up on the web, but it's a well-known paper at the time from the group that were already doing similar work. They knew about it. Surely, they—they funded it actually. Surely, they know about that work.

Minority COUNSEL. If the paper's results were true that WIV1, quote, "had the ability to directly infect humans," would that be a problem for your argument that WIV1 has never been demonstrated to infect humans?

Dr. DASZAK. If WIV1 has been demonstrated to infect people, then that argument that I made would not be true, so that would be a problem. It has not, therefore, it was not.

Minority COUNSEL. Don't worry about the human cells.

Dr. DASZAK. Human cells are not humans. They're cells in a lab. It's a very different thing. Any biologist will tell you that. Same as mice are different to humans. You know, you step up from the cell line work, to the mouse work, to—then we know from other work that people do in primates and the rest of it. It's a big gap between a virus that can infect a cell in the lab and one that can actually infect people in the wild.

Minority COUNSEL. So, the progression from there went to, well, because WIV1 is about 10 percent distant from SARS, and the spikes that we want to insert are getting progressively more distant from there, it seems progressively less likely that any of these chimeric viruses would be more pathogenic, more transmissible.

We talked about this in November. You hopefully explained to us that the theory was, OK, we know that SARS–1 is a human pathogen. We know of 95 or 97 percent SARS-like viruses that simply are not able to infect humans; and so it seems reasonable to hypothesize that as you move away from SARS, you have reduced human pathogenicity.

I think what we struggle with a little bit is at the time, if you know that SARS–1 is a human pathogen, and you know that a 95 percent SARS-like cannot infect humans, and we know that WIV1 at 90 percent similarity seems as if it can, at the very least, infect human cells, it seems as if it would be reasonable to think that there might just not be a linear relationship in this family of viruses.

Dr. DASZAK. If that were the case, why didn't NIH come back to us and say, Well, actually we refute your suggestion. This was the standard thought at the time scientifically, that the further you go away from that evolutionarily, it's the less chance that it's going to be a significant pathogen.

NIH had every opportunity to review that and say, Actually, we disagree. You're not going to do that experiment.

We would have said, OK. Can we do the alternative that's non-infectious? I'm sure that we would have gone ahead with that and got interesting results. Maybe not quite as useful.

Minority COUNSEL. Yes. So, as I said, it's not so much about NIAID because their eventual reasoning I think was not related to what I've talked about——

Dr. DASZAK. Well, I think this——

Minority COUNSEL. Dr. Daszak, my point is there are three or four different reasons in your letter. Not all of them factored ultimately into NIAID's reasoning. But as a reader, when we think about grantee transparency and integrity, there's a concern that you're leaving out an awful lot of context from the letter.

Dr. DASZAK. I don't know how many reams of paper you wanted us to respond to. We cited references in our response. I sought the best advice in the world from Dr. Baric, who's an author on that paper. He could have told us, Wait, that's not a good paper to cite. He suggested we cite it. I mean, we did everything we could to lay out the case. NIH then had every opportunity to refuse it and say, No. Do the alternative.

Minority COUNSEL. That's helpful. And so, that sort of last argument was that Dr. Ralph Baric's group took a WIV1 spike, put it on a SARS backbone, and showed a loss-of-function, not a gain-of-function.

And I think for us, the question is, your work was going to be with a WIV1 backbone and other spikes, and so the WIV1 spike would be the only part of WIV1 that was not relevant at all for your work. And so, I'm confused about that.

Dr. DASZAK. I think if you look at the results from that experiment—because I think we did the experiment and the results showed that there was no difference in any aspect of that.

Minority COUNSEL. My point——

Dr. DASZAK. So, I think our predictions were absolutely spot on, so I don't know why this should be an issue now almost 10 years later.

Minority COUNSEL. Well, I think it's that you haven't quite answered what I was asking about. In other words, you pointed to experiments testing the WIV1 spike, right?

Dr. DASZAK. In the letter to NIH.

Minority COUNSEL. Yes. You were going to use the WIV1 backbone. The only part of WIV1 that you were not going to use at all is the WIV1 spike.

So I think as a reader, I'm a little bit uncertain about why——

Dr. DASZAK. Well, I'm sorry. But at this point I'm confused over WIV1, WIV1 spike, WIV16, SHCO4——

Minority COUNSEL. Well, I think it's fair to say——

Dr. DASZAK. There are multiple experiments we did.

Minority COUNSEL. Yes. It's a little bit concerning that you're confused, I think, is my point.

Dr. DASZAK. No, because I don't have the documents in front of me. You've got a question there. But look, we were asked by NIH to explain why we believed this experiment would not lead to any aberrant reactions. We explained why we felt that. We were then asked to produce an alternative. We did. NIH reviewed it. And as you said, they spent some time reviewing this detailed proposal, and then came back, I think, in July 2016 and said, This is not covered by the gain-of-function policy. Experiment can move ahead.

I think this is a system where the oversight was there. It was brought into play, because we proposed that work, and they saw it and said, Hold on. Let's check. They checked and allowed it to move forward. And for that particular experiment there was no issue at all. And for all of the experiments we did, we submitted the results to NIH, and they had no concerns whatsoever with those results.

So I think this shows the system was working. Maybe there were ways we could tighten it up, and I fully support that. And EcoHealth Alliance will do everything we can to comply with any new rules you think are inadequate, and I think that's a good thing.

Minority COUNSEL. So, I think it's hopeful to transition to the oversight. We've talked a little bit about the one log rule that NIAID put on your grant.

Dr. DASZAK. Yes.

Minority COUNSEL. That rule, I'll just read it out. It's just one sentence. "Should any of the SARS-like chimeras show evidence of enhanced growth greater than one log over the backbone, you've got to stop all the experiments and notify your program officer."

You told us that you'd received data from WIV and that you and your team at EcoHealth had reviewed that to make sure everybody is in compliance with the one log rule, which makes sense. I think we just have a couple of questions about how that unfolded.

In the year 3 report, you gave the experiment results from that year showing what the chimeric viruses did. WIV1, the backbone, wasn't in the report. We talked about this in November. I don't think it should be new to you. The full length WIV1 wasn't included in the——

Dr. DASZAK. Oh, this is the report, but then it was in the publication.

Minority COUNSEL. Yes. That almost makes it worse. In other words——

Dr. DASZAK. Well, there's no significant difference between the two graphs, actually. I mean, I don't see why that's of any relevance really, other than the timing. I mean, clearly the results they had for WIV1 weren't ready to submit for the report but were available when they submitted the paper. And we're all on the paper together, I believe, so that's a standard, normal thing in doing science.

What you do with NIH oversight, when you submit a report, you send them everything you've got. That is stuff from unpublished data, it might be wrong, it might need to be analyzed further. There may be missing parts of it. So, I think what you're finding

is something that was missing, that then was done, and then put into the paper.

Minority COUNSEL. So, without the backbone, you can't possibly know if you are or are not in compliance with the one log rule. Is that right?

Dr. DASZAK. No, that's not right. I mean, we——

Minority COUNSEL. That's not right?

Dr. DASZAK. We—well, no one can know in advance for sure.

Minority COUNSEL. One log is called what?

Dr. DASZAK. With reasonable hypothesis based on the evolutionary distance, based on everything we know about these viruses, we put forward the rationale for the thinking that this would not lead to a striking significant difference. NIH approved it because they also believed that. We did the experiment, reported it back. Nobody came back to us and said, This is highly concerning, because it wasn't. The results were unremarkable.

Minority COUNSEL. I'm sorry, because that's not even close to what I asked.

Dr. DASZAK. Oh.

Minority COUNSEL. So, the question is, without the backbone strain, it is not possible to know whether you are or are not in compliance with the one log rule. Is that right?

Dr. DASZAK. I don't think that's correct.

Minority COUNSEL. Why not?

Dr. DASZAK. Well, I just don't—I'd have to look at the data, but I don't think that's correct.

Minority COUNSEL. Well, it's pretty easy. So, the one log—we'll go back over it. The one log rule is you can't go one log above the backbone. And so, if you don't know what the backbone is, how can you measure compliance?

Dr. DASZAK. Well, you'd have to look at the actual filing of what the backbone—proposed backbone was.

Minority COUNSEL. I agree. And you don't have it in your report.

Dr. DASZAK. So, let me ask you, did that go over one log higher than the WIV backbone.

Minority COUNSEL. No, it didn't end up doing that.

Dr. DASZAK. No. So, why is this an issue at all for anybody.

Minority COUNSEL. Well, that's easy, I think. It's because in year 4, the subsequent year, it went way over one log.

Dr. DASZAK. But that was a different virus.

Minority COUNSEL. Sure. It indicates, however——

Dr. DASZAK. It's a different issue.

Minority COUNSEL. It indicates, however, that the subsequent year when you did start measuring the backbone strain's performance, it went over a log. And you talked to us about why you think——

Dr. DASZAK. You're not comparing apples to apples. That's a completely different experiment.

And, by the way, you say whatever, one log viral growth. Those are genome copies per gram. They're widely known to be inaccurate and not a very ideal measure of true viral growth. That should be a viral titer. So, I think that's an unfair comparison and not relevant.

Minority COUNSEL. I can appreciate that.

Dr. DASZAK. Well, thanks.

Minority COUNSEL. What did the viral titers say?

Dr. DASZAK. I think you know the answer to that.

Minority COUNSEL. It would help, I think, folks to hear it.

Dr. DASZAK. We never received viral titers in the end.

Minority COUNSEL. Did you ever ask for them?

Dr. DASZAK. Well, if you look at the results, you'll see that there's no significant difference in the final day of the experiment. By day 6, the number of genome copies per gram had returned to normal. There would have been no need to go back and do extra work in an experiment that was only remarkable with no significant problems.

Minority COUNSEL. Just because, again, we are focused on the details, which I know can be tedious, but it was day 8 that they evened out, so it was——

Dr. DASZAK. I think day 6 they were pretty much evened out statistically.

Minority COUNSEL. I don't think they were.

Dr. DASZAK. Well, let's check.

Minority COUNSEL. That's fine. We can do that.

Dr. DASZAK. OK.

Minority COUNSEL. So, I think the situation you were in there is the other accompanying figure shows that those mice are losing more weight than the mice that are infected with that backbone strain. And you've got one log of growth on days 2, 4, and 6, and you're telling me, Well, it evened out on day 8, so it doesn't——

Dr. DASZAK. Sure. You know, you seem somehow concerned about that. We submitted that report to NIH. The program officer clearly read it, and NIH never once got back to us and said, Look, we have concerns over that issue. If they had have, then we would have said, OK, let's discuss. Let's get the data. Let's conduct our own titers. Let's check all the raw data.

Nobody reported anything because it wasn't remarkable. Those were normal variations within a small group of mice. We didn't even get to publish it because it probably wouldn't have been publishable. It just wasn't that significant. If you look at my conclusions in the report, in the report, I don't say, Wow, we have this striking response from a group of mice that suggests this virus is highly dangerous. We certainly didn't say, Well—you read out from a paper by Dr. Baric—evidence on the cusp of a pandemic. No. We said this experiment shows that there is sometimes different responses to different viruses in different conditions. That's it. It wasn't remarkable. It isn't a cause for concern.

I also want to remind the Committee these are SARS-CoV-related bat viruses. They're not known to be infectious to people. They have nothing to do with COVID–19. They're not related to SARS-CoV–2.

So again, going back to reports, and even an experiment almost 10 years ago, and sort of saying, Well, we need to go back and get more information, that won't be possible. No one asked for it at the time. We showed the results, all the results we had to NIH, and they were unremarkable, and NIH clearly agreed. They then awarded the next year's funding, and we continued our work.

Minority COUNSEL. Yes. And I think you've hopefully said that even if that year 4 is viewed as going over one log, it's the same experiment as year 5. It's one single experiment. I think that's your testimony, right?

Dr. DASZAK. Yes, that's right.

Minority COUNSEL. All right.

Dr. DASZAK. That's my understanding.

Minority COUNSEL. And I think, as the majority alluded to, we're a little bit unsure about that, but just some data points on it. The year 5 report says, "In year 5, we continued with in vivo experiments."

Just as a starting point, does that not sound to you like in year 5 they continued with experiments?

Dr. DASZAK. Well, this is the language received from Chinese Nationals writing in English. And our understanding of that was they continued analyzing from the in vivo experiments, which is what's in the reports. It's the pathology from the experiment.

Minority COUNSEL. So, it's some English proficiency problem?

Dr. DASZAK. It's a "your misinterpretation of what they meant" problem. My interpretation is that, which I think is shown by the data, that they were doing the pathology on an experiment that was concluded a year ago, which is normal.

Minority COUNSEL. Yes. So, those two experiments——

Dr. DASZAK. Absolutely normal.

Minority COUNSEL. Those two experiments are also measured over different time spans. The figure in year 4 is 6 days. The figure in year 5 is 14 days. That sounds like a different experiment.

Dr. DASZAK. Well, we were told it isn't a different experiment. It's the same experiment. And unfortunately, it's going to be very difficult to get any information on that now. I did try, but we were told it's the same experiment. Now, the time difference may be easily explained by the way they set up the experiment. Maybe some of those mice were allowed to live longer before they were terminated, killed.

Minority COUNSEL. Maybe. And so, at that——

Dr. DASZAK. Yes. I mean, it's totally reasonable.

Minority COUNSEL. Well, I don't quite agree there, but I suppose you can say maybe. We asked what your source was for it being a single experiment. Am I right that the source of for that is the Wuhan Institute of Virology told you so?

Dr. DASZAK. The source is the lab that did the experiment.

Minority COUNSEL. That's what they told you?

Dr. DASZAK. That's the Wuhan Institute of Virology.

Minority COUNSEL. And that was after the pandemic when they told you that?

Dr. DASZAK. It was when I asked, when I was asked to ask by NIH.

Minority COUNSEL. And was that during the pandemic?

Dr. DASZAK. Oh, yes, yes.

Minority COUNSEL. OK.

Dr. DASZAK. After it had begun, yes.

Minority COUNSEL. Do you think there's any possibility that they might have been incentivized to be less than truthful with you in that situation?

Dr. DASZAK. I'm not going to comment on people's motives that I don't know. I've had a long relationship with the scientists in that lab. I've told you about that. You get to understand people, and you get to know them. And, you know, you hear the same stories over 20 years. You hear if there are any discrepancies in their stories.

They've always been honest with us. They've always been truthful. There's never been any untoward, underhand things going on. And I have no reason to think that they were under pressure to lie. There was no indication of that. They've not lied about other things, to my knowledge. You know, these are good scientists that are trying to do their job, and some of the best scientists in the world.

Minority COUNSEL. OK. I'll yield some time back, but I think the broader theme throughout that is a little bit of a concern that when you discuss your work, either here at the Select Subcommittee, or with regulators or in public-facing situations, it's possible perhaps that you're framing issues in a way that is most favorable to you, and less so in a way that's confronting the science at any given moment. And that is just concerning.

Dr. DASZAK. I've only told you the truth.

Minority COUNSEL. OK.

Dr. WENSTRUP. I would now like to yield to the Ranking Member Ruiz for a closing statement, if you would like one.

Dr. RUIZ. As we conclude today's hearing, I remain seriously concerned that you, Dr. Daszak, appear to be eluding questions from this Committee in an attempt to avoid consequences. It was quite evident after this last questioning, and so, it is important that you and your organization be held accountable for all of your actions as Federal grantees, including the failure to comply with transparency obligations. You can say, Well, everybody knows. That's basically what your—everybody just assumes. Everybody knows. But when you're obliged to report them and you don't, that's concerning.

We need to ensure that American taxpayer dollars are being spent responsibly, and I'm pleased by the strong bipartisan agreement demonstrated on this point today. At the same time, we owe it to the American people to be transparent about what exactly we are seeing. And I want to be clear that nothing produced to the Select Subcommittee over the past 14 months, nothing in more than 425,000 pages of internal documents and 100 hours of closed-door testimony substantiates claims that Federal funding to EcoHealth Alliance and its work in Wuhan caused the COVID–19 pandemic.

I have always maintained that my role as Ranking Member of this Committee is to keep an open mind about how the pandemic started, because understanding whether the novel coronavirus emerged from a lab or from nature is essential to better preventing and preparing for future public health threats and to better protecting the American people.

That doesn't negate not being transparent or, you know, not giving full context of your remarks at the time or, you know, saying that you submitted the report, but yet, it wasn't submitted, and then being locked out and not submitting it until years later is not concerning, and your administrative responsibilities and lack of reporting in a timely manner is not concerning.

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So as we press for appropriate accountability for EcoHealth's concerning conduct, it is my hope that we can also dedicate our remaining time to an objective analysis of the various pathways by which SARS-CoV–2 could have emerged, be they zoonotic or stemming from a research-related incident. Because the truth of the matter is that the results will remain inconclusive, and our time in this Congress is running short.

As I said in my opening statement, I stand ready to work with an objective evaluation of all of these possibilities, Mr. Chairman, and I hope that we can do so in order to protect the health and safety of our constituents, our community, and our country.

This origin could still very well be zoonotic, and it could have been a lab leak, but we need to, in my opinion, spend equal amount of time trying to figure out how we can prevent zoonotic transmissions in the right locations around our globe and what we can do to collaborate better with foreign countries, some friendly, some not, in order to better contain the next emerging virus in the host country.

But I do think, and at the end of the day, Dr. Daszak, your responses here are unsatisfactory. Some are understandable, but some are unsatisfactory in that, Well, that's not how I interpreted the Chinese—that's not how I interpreted it when it was quoted. And you say you can interpret it this way and I can interpret it that way. And as my colleague here, my friend——

Dr. DASZAK. Well, I'm——

Dr. RUIZ. You're not asked to speak right now, but as you said, you know, you're explaining things to your convenience to avoid the consequences.

So, you know, that's concerning, and it's very concerning. And, you know, there's been plenty of opportunity for you to submit all of your data and evidence, and now you're telling us that you could potentially have more evidence that you will give us, it's also concerning.

So, with that, you know, I look forward to have forward-facing solutions because, at the end of the day, the end point here is, was this a lab leak. And then if it was, let's improve biosafety standards and ensure that these misinterpretations don't happen. And then—but if it was zoonotic, then let's develop a system to prevent animal transmission.

And since we don't know, and we probably won't know because of the Chinese Communist Party withholding all of their information, then let's work on forward-facing solutions on both scenarios.

With that, I yield back.

Dr. WENSTRUP. I thank the Ranking Member for his remarks. I could not agree more that we have a path forward. We've been conducting investigation. We today have found out a lot of things that have given us guidance on things that we may need to correct.

And I have the same concern—whether something is zoonotic or whether it's manufactured within a lab—how are we going to be prepared, how can we predict it, how can we prevent it, how can we keep the American people safe, and for that matter, people around the globe.

But the purpose of today's hearing was to have a transparent examination of EcoHealth Alliance's president, Dr. Peter Daszak,

given the extensive evidence of their role in gain-of-function research at the Wuhan Institute of Virology, as well as getting a better understanding of the grant process and the oversight, or lack thereof.

Because Congress has a responsibility to ensure American taxpayer dollars are spent in accordance with the law, and that rigorous oversight is applied to the entities that receive these funds, and as the Chairman of this Select Subcommittee, I'm committed to doing just that.

We have identified serious issues with EcoHealth for the public to witness here today, such as failing to disclose competing interests, efforts to conceal where information originated from, and other significant reporting failures.

I want to stress, this investigation is not over, and Dr. Daszak, we are not throwing the baby out with the bath water when it comes to advances in scientific research. That is not the purpose.

Everyone on here, on this Subcommittee, supports good research. This, however, has not been good research.

This Subcommittee has gone, spent time with the World Organization of Animal Health. You talk about infections through the zoonotic community, and possibly jumping to the human community. We have concerns with that. We went and visited with Dr. Tedros in the WHO.

We are concerned about global health. We're not trying to throw the baby out with the bath water. And I agree that it's nice if you can do work in the country where the greatest risk is, and we can do the surveillance there.

But the problem is, if you're in a country that is not trustable and not accountable and noncooperative with the WHO, in this case, we have a problem. And that's not where you should be.

You can be near there. There may be some countries near there, where we can do the same research with trustable and accountable scientists. That is, I think, an important lesson that we have learned here.

And you talk about, Oh, this is research that's really important. I'm not saying it's not, but I'll tell you, there's a difference between this type of research, and research that I see in my journals about bone growth or orthopedic repairs or—this is not research on a cure for cancer that benefits all people. This is dangerous, risky research, and everyone involved with that, that I know of, has stated that at one point in their life or other.

So we cannot just blindly trust the scientists just because they're scientists. They're scientists in China, a country that is an adversary to the United States of America, and especially when they're not forthcoming and honest when working to go forward. And when doing this to secure a Federal grant and fail to do the important work to satisfy the terms of the grant, that's a problem.

As we pointed out in our report and heard today, hiding behind different definitions of "gain of function" to deny your role in conducting dangerous gain-of-function research at the WIV will not prevent us from conducting oversight and holding people accountable.

You know, semantics doesn't change the risks involved. The semantics that we're hearing about today, the different definitions of

gain-of-function research just seems to define the different levels of the risk and the severity of the results.

We know that EcoHealth and Dr. Daszak violated the terms of the NIH grant by failing to report the gain-of-function experiment it was conducting. Let's be clear. We know this wasn't a small oversight or a clerical error. This was a dangerous experiment that was conducted and not reported.

And this was not the only occurrence of EcoHealth failing to properly report. Didn't submit the annual research report. We talked about that a lot today.

This is not an organization that shows leadership committed to protecting taxpayer funds or conducting research in an appropriate manner as set in the terms of the grant. This is troubling pattern of behavior that we are seeing, and conduct as well.

EcoHealth made misleading statements in an effort to benefit yourself and your organization's financial interests and reputation. Misleading grant application to DARPA, you downplayed the Chinese involvement in the project.

Even though we did learn from the emails produced that your proposal—your proposal did what you said you wanted to do in private, which is downplay the role of China and the WIV, specifically Dr. Zhengli Shi.

You know, you didn't disclose your relationship with the WIV when you published the Lancet letter. And you said that Lancet approved this correspondence. Well, I'll tell you what, we asked Lancet to come in and sit before us. They didn't. Neither did *Nature Magazine*. Science did. They came in. They admitted to some of the things they could maybe do better. So, claiming that Lancet approved of it doesn't bear much water in front of this Committee right now.

I could go on, but I think we've covered just about everything, and I'm glad we have. And I think we've done it in a very thorough fashion, but we're waiting for more, because while we're trying to be thorough, we don't feel that we have gotten a thorough response.

If everything was innocent mistakes, we wouldn't need to send a letter asking for more information and documents by April 4—on April 4. Too many mistakes. Accountability taking far too long.

But here we are, and we'll continue to conduct oversight and evaluate the evidence surrounding EcoHealth Alliance's research activities.

Before I close, I ask unanimous consent to place the report on evaluation of the evidence surrounding EcoHealth Alliance, Inc's, research activities into the record.

Dr. WENSTRUP. With that, and without objection, all Members will have 5 legislative days within which to submit materials and to submit additional written questions for the witnesses, which will be forwarded to the witnesses for their response.

With that, and without—and if there's no further business, without objection, the Select Subcommittee stands adjourned.

[Whereupon, at 1:09 p.m., the Subcommittee was adjourned.]

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